

THE FEDERATED REPUBLIC

CONSTITUTION

175 Provisions · 20 Articles

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Preamble

We built a Republic worth living in — and worth adopting. Here is why.

We came from different nations, communities, and traditions, and out of that difference we made something none of us could have made alone: a government strong enough to act, restrained enough to trust, and answerable — always — to you.

We built it on one conviction: the person comes before the state. You are whole and equal. You hold rights no government granted and none can take away. Behind those rights we placed the entire weight of the Republic, so that no one among you is ever left without remedy, without a voice, or without the conditions of a decent life.

We founded it on the consent of the governed, the self-government of its constituent communities, and the recognition of sovereignty that came before us and was never surrendered.

And we did not ask you to trust us. We divided public authority, limited it, and subjected it to independent courts, open government, democratic election, permanent public record, and effective remedy — so that no office and no institution stands above this Constitution. We opened the state to the light, so you can see how you are governed. We bound every office we created — even the ones we admired most — so this Republic stays yours whether it is governed well or badly. That is the difference: most governments ask for your faith. This one gives you the means to withhold it.

We made these things to hold not only in times of wise government and public accord, but against error, abuse, emergency, and division.

What follows is long because your freedom is detailed, and every page of it exists to keep a promise made to you.

Read it. Then adopt it, and make it your own.

Article I — Individual Sovereignty and Rights

§1.1 Right to Courts and Legal Remedy

Every person may seek legal remedy for any rights violation before an independent and impartial court. This right is self-executing: where the Legislature has not funded adequate legal aid, courts appoint counsel at public expense. Procedural costs may not be used to make the right to a remedy illusory.

§1.2 Individual Sovereignty Floor

Every person possesses an inviolable sphere of personal sovereignty over their own life, body, and choices. Government authority operates outside this sphere. Where the boundary is disputed, the presumption runs in favor of individual liberty; government bears the burden of demonstrating constitutional authority for any limitation.

§1.3 Prohibition of Torture and Cruel Treatment

Torture and cruel, inhuman, or degrading treatment are absolutely prohibited. No person, wherever located, may be subjected to any such treatment by an agent or officer of the Republic acting in that capacity, nor by any person acting at the direction or with the acquiescence of the Republic. This right is non-derogable under §1.19.a.

§1.4 Prohibition of Slavery and Forced Labor

Slavery, involuntary servitude, and forced labor are absolutely prohibited. Prison labor authorized by statute and civic obligations lawfully required of citizens by the Legislature — including jury service, military conscription, and civil emergency duties — do not constitute forced labor under this provision. This right is non-derogable under §1.19.a.

§1.5 Civil and Political Liberties

Every person holds the rights of expression, thought, conscience, religion, association, assembly, petition, and movement. Government may regulate the time, place, and manner of expression and assembly for compelling public-order purposes, subject to intermediate scrutiny and without discriminating on the basis of viewpoint. No government may compel expression or penalize expression through intermediaries it controls or has directed to suppress expression. Freedom of religion protects belief absolutely; it protects practice against limitation except where practice causes direct harm to others. The Legislature establishes by statute any framework for exercising these rights, provided that framework does not burden the right itself.

§1.6 Equality and Non-Discrimination

Every person is equal before the law. Government may not discriminate on the basis of race, ethnicity, sex, sexual orientation, gender identity, religion, national origin, disability, age, or economic status in the provision of any governmental benefit, the imposition of any burden, or the application of any law. Distinctions rationally related to a legitimate governmental purpose that do not turn on these characteristics are permissible. Distinctions that do turn on these characteristics require compelling justification and are subject to strict scrutiny. Age distinctions rationally related to developmental capacity, lifecycle considerations, or demonstrated actuarial risk are subject to rational basis review rather than strict scrutiny. Economic-status distinctions that extend additional benefits, assistance, or support to persons of lesser economic means, including the social state obligations under §12.1, are subject to rational basis review rather than strict scrutiny; economic-status distinctions that impose additional burdens or restrict access based on wealth remain subject to strict scrutiny.

§1.7 Bodily Sovereignty

Medical decisions are the province of the individual and their chosen provider. The state may promote public health through information, licensing, and access; it may not compel medical decisions or penalize their exercise. No government may impose civil or criminal liability on any person solely for receiving, assisting access to, or providing information about medical care that was lawful where received.

§1.8 Privacy, Property, and Security of the Home

Every person holds the right to privacy and security in their person, home, communications, and data, and the right to own property. The home may not be entered, nor any person, communication, or data searched, surveilled, or collected by government, without consent or prior independent judicial authorization based on specific, articulable grounds. The Legislature establishes the warrant framework by statute. Encryption is lawful and may not be prohibited. The state may take private property for public use only upon payment of just compensation determined by independent process, not by the taking authority.

§1.9 Democratic Participation

Every citizen holds the right to vote, stand for office, and participate in the democratic processes of the Republic, subject to the eligibility requirements established in this constitution, and the right to have that vote counted. Government at every level is prohibited from taking any action for the purpose of, or having the substantial effect of, suppressing or reducing access to the franchise; no law, rule, administrative decision, or practice adopted for such purpose or having such effect is constitutionally valid. The Republic holds an affirmative obligation to make voting as accessible as possible consistent with security — it may not compel citizens to vote, but it must provide conditions in which doing so is genuinely possible. Federal election periods are public holidays.

§1.10 Right to Bear Arms

Every person holds the right to keep and bear arms for lawful purposes including self-defense. States may establish licensing and safety frameworks. No government may enact a categorical prohibition on the civilian ownership of arms. The Legislature and States may regulate the type, transfer, and carry of arms subject to the requirement that lawful ownership for self-defense remain available.

§1.11 Habeas Corpus

Every person detained by public authority has the right to challenge that detention before an independent and impartial court. The detaining authority must produce the person and justify the detention within the period established by statute, not to exceed 72 hours. No court may decline to hear a habeas corpus application. This right is non-derogable under §1.19.a.

§1.12 Rights of the Accused and Fair Trial

Every person accused of a criminal offense holds: the right to be informed promptly of the charges; the right to counsel of their choosing, or to competent, adequately resourced counsel appointed at public expense where they cannot afford representation; the right to adequate time and means to prepare a defense; the right to examine witnesses; the right to silence without adverse inference; and the right to a speedy trial. No person may be penalized — by sentence enhancement or otherwise — solely for exercising the right to trial. Bail may not be used as punishment; its purpose is ensuring appearance and public safety, calibrated to individual circumstances. The Legislature establishes by statute the procedural framework for criminal proceedings, subject to the requirements of this provision. Where any systematic or automated methodology is used to generate evidence, the accused has the right to examine that methodology in full.

§1.13 Right to a Public Trial

Every person accused of a criminal offense has the right to a public trial before an independent and impartial court. Proceedings may be held in camera only to the minimum extent necessary to protect a compelling interest identified in advance by the court; the existence of any proceeding may not be concealed. The court states the compelling interest and the expected duration of any closure at the time it is ordered, published to the NRS. No portion of a proceeding may remain sealed beyond 10 years from final judgment. A single 5-year extension may be granted where the court publishes a justification to the JM; the JM assesses whether the justification meets the standard and publishes its finding to the NRS. No portion may remain sealed beyond 15 years under any circumstances. On expiry, the NRS Panel publishes the sealed record within 30 days; this obligation is automatic and requires no further government act. The accused, or a person convicted in the proceeding, may at any time consent to publication of any sealed portion. Where the sealing protects an interest of a person other than the accused, the court determines whether publication would harm that interest; absent such harm, the record is published on consent. This right is non-derogable under §1.19.a.

§1.14 Freedom from Retroactive Criminal Law

No person may be convicted of an act that was not a criminal offense when committed, or subjected to a penalty greater than that applicable at the time of the offense. No criminal law may be applied retroactively to the disadvantage of the accused. This right is non-derogable under §1.19.a.

§1.15 Double Jeopardy

No person may be tried or punished twice for the same offense following a final acquittal or conviction. Same offense means the same conduct regardless of how it is labeled or charged; the protection applies to any charge that does not require proof of an element distinct from those required for the original charge. A State and the Republic may each prosecute the same conduct under their own respective laws. Where a State and the Republic each obtain a conviction arising from substantially the same conduct, any sentences imposed run concurrently, and the person serves only the greater of the two terms; time served under either sentence counts toward both. An acquittal or conviction in one jurisdiction does not bar or otherwise affect the other's separate prosecution of the same conduct. The Legislature defines by statute the scope of this protection above this constitutional floor.

§1.16 Social Assistance Floor

Every Inhabitant is entitled to access the Republic's social state systems under Article XII. No government may exclude any person from social assistance on the basis of the characteristics listed in §1.6. The Legislature establishes by statute the content and administration of social assistance, subject to the adequacy standard established by statute. The EM annually assesses whether the established standard satisfies the requirements of this provision and publishes its assessment to the NRS. The Legislature must take reasonable measures within available resources toward the progressive fulfillment of this right; no reduction in the adequacy standard below the established level is constitutionally valid absent a certified Severe Revenue Contraction under §12.4; any such reduction lapses as §12.4 provides.

§1.17 Education

Every child has the right to education adequate to enable full civic participation. The state must ensure this education is available and accessible. Parents hold the right to direct the education of their children within the framework of public educational standards. The Legislature establishes by statute the content and funding of public education, subject to the adequacy standard established by statute. The EM annually assesses whether the established standard satisfies the requirements of this provision and publishes its assessment to the NRS. The Legislature must take reasonable measures within available resources toward the progressive fulfillment of this right; no reduction in the adequacy standard below the established level is constitutionally valid absent a certified Severe Revenue Contraction under §12.4; any such reduction lapses as §12.4 provides.

§1.18 Environmental Obligations

Government holds an obligation not to cause environmental harm to persons within its jurisdiction through its own actions or through the actions of those it licenses. The Legislature establishes by statute the framework for environmental protection, and may not enact statutes that systematically permit environmental harm to defined communities. This provision does not require the achievement of any particular environmental outcome; it requires reasonable governmental measures to identify material environmental harms and genuine governmental action toward environmental protection proportionate to harms known or reasonably capable of identification.

§1.19 Emergency Derogation

No emergency — however severe — suspends the Individual Sovereignty Floor in full. Temporary derogation of certain rights is permitted only under the strict conditions of this section; the rights enumerated in §1.19.a may not be derogated. The three Monitors continue to operate with full constitutional authority throughout any emergency — they cannot be suspended or have their mandate reduced by emergency declaration. Emergency derogation of Article I rights requires a declaration specifying the nature of the emergency, which rights are limited, the geographic scope, and the duration; blanket declarations are constitutionally invalid. The declaration is published to the NRS immediately. A derogation declaration may be issued by either executive acting within their constitutional domain under §2.1 and §2.5, effective on NRS publication, for a period not to exceed 14 days; an executive declaration may not be renewed, extended, or reissued for substantially the same emergency by executive act. Derogation beyond 14 days requires a statute enacted through the ordinary legislative process; the statute must state a fixed expiration date and may not be extended. Upon expiration of any declaration, all derogation measures lapse under §1.19.b.

§1.19.a Non-Derogable Rights

These six rights are absolute: the prohibition on torture (§1.3); slavery (§1.4); habeas corpus (§1.11); the right to a public trial (§1.13); no retroactive punishment (§1.14); and non-refoulement (§1.21). No emergency declaration, executive order, or legislative act may derogate any of these rights. No emergency measure, regardless of its stated purpose, may be applied in a discriminatory manner on the basis of race, ethnicity, religion, or national origin; any such application is constitutionally void.

§1.19.b Emergency Declaration Lifecycle

Emergency measures lapse automatically at the expiry of the Declaration. No Declaration — executive or statutory — may be extended; every Declaration expires on the terms stated at its issuance. Judicial review of any emergency measure is available to any citizen at any time, and courts may rule during the emergency that a specific measure is unconstitutional. No emergency measure may be made permanent by legislative act; any measure not re-enacted through the ordinary legislative process lapses automatically at the expiry of the Declaration. The Legislature may not re-declare an emergency measure within 60 days of its expiry. A new emergency declaration covering substantially the same geographic scope and affecting substantially the same rights as a declaration that expired within 60 days is subject to the same bar, regardless of how the new emergency is labeled; the EM publishes an assessment of whether any new declaration constitutes a relabeled continuation of the prior emergency within 14 days of its issuance. After 60 days, re-declaration requires a 2/3 majority of both chambers certifying continued necessity.

§1.20 Right to Seek Asylum

Every person who reaches the Republic's jurisdiction has the right to claim asylum and have that claim determined by an independent process under §6.3. The manner of entry does not affect this right. An asylum seeker is an Inhabitant of the Republic from the date of claim and holds all rights in this Article.

§1.21 Non-Refoulement

No person, wherever located, may be returned, expelled, or extradited by the Republic, or by any person acting at the direction or with the acquiescence of the Republic, to any territory where they face genuine risk of persecution, torture, or deprivation of life. This protection applies regardless of the person's status, conduct, or the nature of the receiving territory's government. This right is non-derogable under §1.19.a.

§1.22 Family

Every person holds the right to found a family.

Article II — The Dual Executive

§2.1 The Legat Consul — Domain and Term

To hold the office of Legat Consul, a person must have been a citizen for at least 7 years at the time of taking office. Eligibility and disclosure requirements applicable to all federal offices are established in §7.4. The Legat Consul holds enumerated authority over: military command and force employment; foreign affairs, treaty negotiation, recognition of foreign governments, and the receipt of foreign delegations; intelligence; trade agreements subject to §2.4; and relations with recognized indigenous nations under Article XVI, including recognition determinations under §16.4; and appointments within the Legat Consul's domain. Where the domain of a proposed action is disputed, the Council of Ministers under §2.14 is the first forum; pending resolution, each executive continues only those functions clearly within their established domain; the specific action giving rise to the dispute is suspended. Either executive may petition the SC under its original jurisdiction in §4.5 for domain determination. During active military operations, the Legat Consul's domain governs operational decisions. The Legat Consul serves a term of four years. No person may serve more than two terms as Legat Consul; the limit is a lifetime maximum. A person who has served one term as Legat Consul may not seek election to a second term at the next occurring election for that office, but may seek election at any subsequent election. Service as a successor under §2.9 does not constitute an elected term for this purpose. Upon expiration of the term, all authority transfers immediately to the incoming Legat Consul. The outgoing Legat Consul retains no access to classified information, government systems, or official functions beyond the time of transfer.

§2.2 Military Authorization Framework

The Legat Consul may use military force in immediate response to an active or imminent attack on Republic territory, citizens abroad, or treaty allies. Beyond immediate response, all use of military force requires legislative authorization. The Legat Consul must notify both chambers and the Civic Consul promptly upon any use of force, not to exceed 24 hours; the Legislature may define a shorter period by statute. Legislative authorization expires unless affirmatively renewed at intervals the Legislature defines by statute; the constitutional default on expiry is cessation of all operations — the burden is always on authorization, never on termination. Military expenditure is governed by §14.2. All military operations must state and be consistent with an authorized purpose under §14.1.

§2.3 Consular Intelligence and Veto

The Legat Consul directs foreign intelligence. No intelligence operation may be conducted against Republic citizens within Republic territory on the Legat Consul's authority; such operations require independent judicial authorization.

§2.3.a Legat Consul Legislative Veto

The Legat Consul may veto legislation that raises a genuine constitutional concern within the Legat Consul's security domain — military operations, intelligence, treaty obligations, or border security — by returning the bill within 10 business days of final passage with a written statement of grounds, published to the NRS. A general or speculative security connection is insufficient. If the Legat Consul neither acts nor objects within 10 business days of final passage, the bill is enacted by operation of law. The Legat Consul's veto may be used only once on any bill; a bill reintroduced and passed by both chambers in a subsequent session proceeds without Legat Consul interference. Under §9.1, either Speaker may request an EM assessment of the domain question. The Senate may override by 2/3 at any time during that session; where no override occurs, the bill lapses for that session.

§2.4 Legat Consul International Agreements

The Legat Consul negotiates and concludes treaties and trade agreements. Treaties are subject to ratification under §3.6. Trade agreements are subject to legislative approval under §3.6. During negotiation of any trade agreement, the Legat Consul must consult the Civic Consul on its domestic implications; the Civic Consul's response is published to the NRS.

§2.4.a Domain Officers

The Legat Consul appoints domain officers to exercise defined portions of the Legat Consul's constitutional domain authority. Statute may create, alter, or abolish particular domain offices and defines qualifications and confirmation procedures, but may not transfer, diminish, or enlarge the Legat Consul's constitutional authority by changing the organization of those offices. Domain officers are nominated by the Legat Consul from a pool of qualified candidates maintained by the Elections Panel under §9.8 and confirmed by the Senate under procedures established by statute; acting appointments may be made pending confirmation for the period and under the conditions the Legislature defines. Persons employed in the civil service or military under a domain officer's direction are not domain officers. The Senate may remove a domain officer by majority of full seated membership; the grounds are stated and published to the NRS. The Legat Consul may dismiss a domain officer at any time, published to the NRS.

§2.5 The Civic Consul — Domain and Term

(1) The Civic Consul holds residual executive authority over all functions not enumerated to the Legat Consul. To hold the office of Civic Consul, a person must be a serving member of the Assembly at the time of election as required by §2.6. Eligibility and disclosure requirements applicable to all federal offices are established in §7.4. The Civic Consul serves at the confidence of the Assembly, subject to removal under §2.6.

(2) No person may serve more than 8 years as Civic Consul across all periods of service; the limit is a lifetime maximum. Service in an acting capacity does not count toward this limit. A person who leaves the office of Civic Consul may not serve again as Civic Consul until one full Assembly electoral cycle has passed since they left the office.

(3) The Civic Consul's domestic authority includes:

- all domestic policy and regulatory frameworks;
- preparation of a proposed budget for the civic domain, submitted to the Assembly under §12.2;
- the civil service;
- and administration of the social state under Article XII.

(4) The Civic Consul may declare a domestic emergency in response to natural disaster, public health crisis, or infrastructure failure, subject to the constraints of Article I and renewable by Assembly approval at intervals defined by statute; in the absence of a statutory interval, the constitutional default is 30 days. The Legat Consul has no role in domestic emergencies.

(5) The Civic Consul has the right to be informed on matters within the Legat Consul's domain that bear on domestic interests or create domestic fiscal obligations. No classification or domain assertion may be used to withhold such information from the Civic Consul. The Legat Consul shall consult the Civic Consul on treaty and compact negotiations with recognized indigenous nations where their terms bear on domestic interests; the Civic Consul's response is advisory.

(6) Where the Civic Consul is temporarily unable to exercise authority as determined under §2.16, acting authority vests by constitutional operation in accordance with the following order: (i) the Assembly Speaker; (ii) persons holding offices designated by statute for this purpose, in the order so established; (iii) the most senior Assembly member by continuous service; where two or more members have equal continuous service, the tiebreaker is determined by statute. A person in the order of succession may decline under

§2.16(4). The conduct of acting service is governed by §2.16(6). Acting status ends when the Civic Consul's incapacity ends under §2.16(3) or a new Civic Consul is elected under §2.6; the acting officer's legislative functions resume at that moment.

(7) The Civic Consul appoints ministers to lead the departments of the civic domain; ministerial portfolios are defined by statute. Ministers serve at the pleasure of the Civic Consul and require no confirmation; appointments and dismissals are published to the NRS. A minister's service ends when the Civic Consul leaves office; ministers continue in a caretaker capacity, limited to maintaining existing policy, until the incoming Civic Consul's ministers are appointed.

§2.6 Constructive Vote of No Confidence

(1) The Civic Consul is accountable to the Assembly. The Assembly may remove the Civic Consul only through a constructive vote of no confidence: a single vote that simultaneously removes the sitting Civic Consul and installs a named replacement, by absolute majority of full seated Assembly membership. A confidence vote that does not name and elect a successor has no constitutional effect. Grounds for the vote are published to the NRS; the vote is a political act and is not subject to judicial review.

(2) A person must be a serving member of the Assembly to be elected Civic Consul. On election as Civic Consul the person vacates their Assembly seat, which is filled under §3.2 as a mid-term vacancy; that Assembly term is deemed fully served by the departing member for purposes of the consecutive-term limit under §3.2.

(3) While in office the Civic Consul holds the ceremonial seat of the office of Civic Consul, which carries the right to sit, speak, and be held to account in the Assembly but carries no vote; the Civic Consul exercises no legislative vote while in office, consistent with §7.8. The ceremonial seat is not counted in the full seated membership of the Assembly for quorum or any voting threshold.

(4) This section governs a person elected or installed to the office of Civic Consul; the Assembly Speaker serving as Acting Civic Consul under §2.5 or §2.6.a retains their own Assembly seat and does not vacate it.

(5) The Civic Consul serves until removed under this section, until the expiration of the consecutive-service limit under §2.5, by resignation, or through the pathways of §7.5.

(6) A person who leaves the office of Civic Consul holds no Assembly seat by virtue of having been Civic Consul; the seat vacated on taking office remains filled under §3.2. A former Civic Consul may run in an election for an Assembly seat, may hold any other constitutional office for which they meet the eligibility requirements, and may seek the office of Civic Consul again subject to the cooling-off period under §2.5.

§2.6.a Government Formation

(1) The Assembly elects the Civic Consul by absolute majority within the period defined by statute following any general election or vacancy; where no statutory period has been established, the constitutional default is 21 days.

(2) If the Assembly does not elect a Civic Consul within that period, the acting role attaches automatically to the sitting Assembly Speaker, who serves as Acting Civic Consul by constitutional operation with authority limited to maintaining existing policy, and retains their Assembly seat. Where there is no sitting Speaker, the most senior Assembly member by continuous service serves in the acting role instead; where two or more members have equal continuous service, the tiebreaker is determined by statute. The acting service is published to the NRS. The Acting Civic Consul is not subject to removal under §2.6.

(3) Bills passed during the Acting Civic Consul's service are presented to the Acting Civic Consul. The Acting Civic Consul may not exercise the suspensive veto under §2.7 but may, within 10 business days of final passage, publish a written pause notice to the NRS staying enactment. Upon such notice, the Speaker shall schedule the bill for recall by the Assembly; the Assembly may withdraw the bill by simple majority within the pause period. A bill not so withdrawn is enacted by operation of law at the close of the 10-business-day period. Where the Acting Civic Consul issues no pause notice within 10 business days of

final passage, the bill is enacted by operation of law. The pause may not be used on the annual budget, bills implementing a constitutional obligation, or emergency legislation.

(4) The Acting Civic Consul administers a nominating ballot of the Assembly to identify candidates for a national election. This administration is purely procedural and confers no discretion over the ballot's conduct or result. The ballot requires no quorum and produces its result regardless of participation. The candidates receiving the most votes advance, being no fewer than two and no more than four; where a tie would cause more than four candidates to advance, the tie is resolved in favor of the candidate with greater continuous service, with any remaining tie determined by statute. Where only one member receives votes, that member advances alone and is submitted to the national vote for ratification. Only members otherwise qualified for the office of Civic Consul under §2.5 and §7.4 may advance.

(5) The Elections Panel administers a national ranked-choice election among the advancing candidates, to be held within the period defined by statute, with a constitutional default of 45 days and an absolute maximum of 90 days from the close of the nominating ballot. The Elections Panel may extend the period beyond the default only for cause published to the NRS, and in no case beyond 90 days. Where a single candidate stands for ratification, the national vote is a simple yes-or-no question. Should an advancing candidate become ineligible before the vote, the election proceeds among those who remain qualified.

(6) The candidate winning the national election, whether by ranked-choice tabulation or by ratification, becomes Civic Consul with full authority, vacates their Assembly seat under §2.6, and is subject to removal only under §2.6. The Acting Civic Consul's service ends upon that installation.

(7) At any time before the national election begins, the Assembly may elect a Civic Consul by absolute majority, which terminates the fallback and returns the office to the ordinary process. Once the national election has begun, it proceeds to conclusion.

§2.7 Civic Consul Legislative Instruments

The Civic Consul may withhold assent by returning a bill within 10 business days of final passage with written grounds published to the NRS; the bill is tabled for one month regardless of any change in CC office. The Senate may override by 2/3 during that month; failing override, the bill returns to the Legislature and must pass both chambers again before returning to the Civic Consul, who may not exercise the suspensive veto on that bill again, including where that bill lapses and is reintroduced in a subsequent session. The Civic Consul may also issue a fiscal notice — a written NRS statement that a bill would cause or materially worsen a structural deficit — at any point within the 10-business-day review window; a fiscal notice does not block enactment but entitles the Assembly Speaker to recall the bill for reconsideration within the remaining window; both instruments may be used on the same bill. Where the Civic Consul neither returns the bill nor issues a fiscal notice within 10 business days of final passage, the bill is enacted by operation of law. The suspensive veto may not be used on the annual budget, bills implementing a constitutional obligation, or emergency legislation. Both executives review concurrently from final passage.

§2.8 Duty of Refusal

No civil servant, military member, or person acting under direct federal authorization in the performance of a specific federal function may comply with an order from either executive that would require violation of any constitutional provision or statute. Refusal of such an order creates no civil or criminal liability and is no basis for dismissal or penalty. The refusing person may report the order to the EM, which may investigate and publish findings to the NRS. Any penalty imposed for a lawful refusal is void. The Legislature establishes by statute the framework for protecting and supporting civil servants who exercise this duty.

§2.9 Legat Consul Succession and Incapacity

- (1) Full succession activates on the Legat Consul's death, resignation, removal, or certified permanent incapacity. The Senate Speaker holds the office of Legat Consul from the moment the triggering event occurs — no active assumption, oath, publication, or other implementing act is required. The transfer is instantaneous and self-executing by constitutional operation and must be recorded to the NRS as soon as possible.
- (2) Full succession vacates the successor's Senate seat, which is filled through the ordinary vacancy process. Where the Senate Speaker is simultaneously unable to serve, the most senior Senator by continuous Senate service holds the office from that moment; where two or more Senators have equal continuous service, the oldest by age holds the office.
- (3) The Legislature shall by statute establish an order of succession for the Legat Consul's temporary incapacity under §2.9(6)(ii) and for full succession beyond the constitutional floor under §2.9(2). Until such statute is enacted, the constitutional order under §2.9(6)(i) and (iii) applies.
- (4) The military chain of command recognizes a transfer under this section from the constitutional moment of transfer. The NRS record is authoritative evidence of the change and does not create the authority. Any order issued in the name of the prior Legat Consul after the transfer is constitutionally void.
- (5) A successor serves the remainder of the current Legat Consul's term; a successor who serves any portion of a predecessor's term must sit out one full term before standing for election as Legat Consul. After the cooling-off period, the former successor is eligible for election under §2.1 on the same terms as any other candidate, subject to the full two-term limit established there.
- (6) Where the Legat Consul is temporarily unable to exercise authority as determined under §2.16, acting authority vests by constitutional operation in accordance with the following order: (i) the Senate Speaker; (ii) persons holding offices designated by statute for this purpose, in the order so established; (iii) the most senior Senator by continuous Senate service; where two or more Senators have equal continuous service, the oldest by age holds the office. A person in the order of succession may decline under §2.16(4). The conduct of acting service is governed by §2.16(6). Acting authority ends when the Legat Consul's incapacity ends under §2.16(3).

§2.10 Executive Transparency

Both executives must publish all official acts — orders, certifications, vetoes, objections, determinations, and refusals to certify — to the NRS within the period defined by statute. No executive may classify, delay, or suppress publication of an act this constitution requires to be published. Acts of non-consent — refusals to certify, objections, escalation denials, and declinations to act within a constitutional mandate — carry the same attribution and publication requirements as acts of authority. An executive who declines certification, withholds approval, or refuses to perform a constitutionally required function is constitutionally responsible for that act to the same degree as an executive who issues an order. The NRS record of every executive act of non-consent is permanent, attributed to the individual officer, and may not be reclassified or removed. A late-published act is not void.

§2.11 Emergency Governance

Where the Assembly is unable to function for an extended period — as defined by statute; in the absence of a statutory definition, the constitutional floor is 30 consecutive days during which the Assembly cannot achieve quorum — the Senate may assume joint emergency legislative authority for three functions only: election administration, social state funding continuity, and active national security obligations. Where the Elections Panel is unable to function, the EM and LM jointly certify that incapacity and publish it to the NRS; from that moment the Senate administers federal elections under this provision until the Elections Panel is restored and the restoration is published to the NRS. All Senate emergency actions require co-signature of the Acting Civic Consul and are published to the NRS. This authority expires automatically when a new Assembly is seated. In catastrophic circumstances where the Legislature cannot convene and immediate action is necessary to prevent a material interruption of one or more of the three functions authorized by this section, the Senate's emergency legislative authority may be activated before the ordinary trigger by joint certification of the Acting Civic Consul and the Chief Justice — or, where the Chief Justice is unavailable, the most senior Associate Justice by continuous Supreme Court service. The certification must identify the circumstances, the necessity for immediate action, and the function or functions activated, and must be published to the NRS. Expedited authority expires after 14 days unless the certifying officers publish a renewed certification of continuing necessity. In no event may expedited authority continue beyond 30 consecutive days except under the ordinary trigger of this section.

§2.12 Clemency

Each Consul holds clemency authority only within that Consul's constitutional domain.

The Legat Consul may grant clemency for military-law and national-security offenses. The Civic Consul may grant clemency for domestic federal offenses. Neither Consul may grant clemency for an offense within the other's domain.

No person may grant clemency to themselves. An attempted self-clemency is void.

Every grant of clemency must be published to the NRS with a statement of the reasons for the grant and attribution to the granting Consul.

Before or after exercising clemency, the granting Consul may request an EM factual review. Either chamber of the Legislature may request an EM review of any clemency grant at any time. The EM shall publish any resulting findings to the NRS. An EM review or request for review does not suspend, delay, condition, or invalidate the exercise of clemency.

Nothing in this section limits any constitutional, political, civil, or criminal remedy otherwise available for misconduct connected with the exercise of clemency.

Group amnesty requires legislation.

§2.13 Consular Removal

The Legat Consul may be removed on two independent tracks. Under the legislative track, removal requires 2/3 of both chambers in a concurrent vote on grounds of constitutional breach, demonstrated permanent incapacity, or serious misconduct. Either chamber may request a JMC assessment as part of the proceedings; any such assessment is published to the NRS and is not a prerequisite to removal. Under the popular track, a Senate majority may refer the question to a national recall referendum administered within the period defined by statute. The Legat Consul remains in full authority while the referendum is pending. The Legat Consul is removed upon certification of an affirmative referendum achieving 60% of votes cast under §7.3 with a minimum 55% citizen participation. Succession then occurs immediately by constitutional operation under §2.9 and the change is recorded to the NRS as soon as possible. A failed referendum may not be re-initiated within the same Legat Consul's term.

§2.14 Council of Ministers

The Council of Ministers comprises the Legat Consul's domain officers and the Civic Consul's ministers meeting jointly as a standing cross-executive coordination body. The Council is the primary forum for matters that cross executive domains. The Council makes recommendations and coordinates positions; it does not exercise executive authority. A summary record of each session is published to the NRS within the period defined by statute. The existence and general subject of each session may not be classified. Operational procedures are defined by statute.

§2.14.a Cross-Domain Emergency Lead

In a cross-domain emergency requiring unified operational authority, either executive may propose a temporary operational lead designation. Concurrence of both executives makes it effective and is published to the NRS. Where the executives cannot agree, either may petition the SC for expedited resolution under §4.5. A lead designation assigns operational coordination only and does not affect either executive's constitutional domain authority.

§2.14.b Cross-Domain Assistance

Either Consul may formally request that the other exercise specified authority within the other's domain in support of a need arising in the requesting Consul's domain. The request states the need, scope, and duration and is published to the NRS; the responding Consul determines whether and how to act within their own domain and publishes the response to the NRS. Neither Consul may compel the other. A request may specify a duration not to exceed 90 days; assistance may be renewed only by a fresh request and response, each published to the NRS. This section may provide only capability used in support of persons — including logistics, transport, materiel, technical, medical, disaster, and search-and-rescue capability. It may not provide capability used to compel, detain, or direct persons, to surveil, monitor, or collect intelligence on persons within the Republic, or to commandeer civilian resources; any such capability is available to the requesting Consul only under §1.19 or other express constitutional authority. Capability provided under this section operates under the responding Consul's command as to means and the requesting Consul's direction as to purpose and limits, and remains subject in full to Article I. A foreign invasion or comparable threat engaging both domains is governed by §2.14.a. A dispute arising under this section is resolved through the mechanism in §2.14.a.

§2.15 Federal Prosecution

The Civic Consul is responsible for the enforcement of federal law and sets general prosecution policy. The Legislature shall by statute establish a Federal Prosecution Service independent in the exercise of individual prosecutorial decisions. The Civic Consul may issue directions to the Service on general prosecution policy. Any direction concerning a specific prosecution must be in writing and published to the NRS simultaneously with issuance. The Legislature may not reduce the Service's appropriation below the prior year's level without a 2/3 vote of both chambers.

§2.16 Executive Incapacity

(1) A Consul is temporarily unable to exercise authority when either of the following is published to the National Record System:

- (a) a declaration of incapacity by the Consul; or
- (b) a determination of incapacity by the Council of Ministers under subsection (2).

(2) Council of Ministers determination:

- (a) The Council may, by majority of members then in office provided no fewer than five are in office, determine that a Consul is temporarily unable to exercise authority. This function is a constitutional function of the Council and is not an exercise of executive authority. Where fewer than five members are then in office, the determination may instead be made jointly by the other Consul and the Chief Justice, published to

the NRS.

(b) The determination is published to the NRS; upon publication, acting authority vests in accordance with the applicable succession provision.

(3) Restoration:

(a) An incapacity under this section ends when the Consul publishes a restoration declaration to the NRS. The Consul transmits the declaration to the Speaker of each chamber, to the other Consul, and to the officer then holding acting authority; full authority returns to the Consul 24 hours after publication.

(b) Where the Council determines incapacity on the same or substantially similar grounds within 90 days of a restoration declaration, the Consul may not end that incapacity by restoration declaration alone; the incapacity ends only when the Consul's accountability chamber — the Assembly for the Civic Consul, the Senate for the Legat Consul — so resolves by absolute majority of its full seated membership.

(4) Declination:

(a) A person upon whom acting executive authority would fall under §2.5(6) or §2.9(6) may decline by publishing a declination to the NRS within 48 hours of the incapacity publication.

(b) Upon publication of the declination, acting authority passes by constitutional operation to the next person in the applicable order of succession.

(c) A declination is irrevocable and does not prejudice the person's eligibility for any future succession event. A person who does not publish a declination within 48 hours is deemed to have accepted.

(d) The person last in the order of succession may not decline.

(5) Duration. An incapacity under this section that has continued for 90 days ends by constitutional operation unless, before expiry, a removal process under §2.6 or §2.13 has been initiated against the Consul, in which case the incapacity continues until that process concludes. Determination of incapacity under this section suspends the Consul's authority but does not affect their compensation, benefits, or the running of their term.

(6) While serving in an acting executive capacity under §2.5(6) or §2.9(6), the acting officer may not exercise any legislative function; the officer retains their seat and any chamber office held, and the chamber provides for the exercise of those functions during that period under its internal procedures. Acting service neither extends nor suspends the officer's own electoral mandate; where the acting officer ceases to be a member of the chamber from which they were drawn, acting authority passes by constitutional operation to the next qualified person in the applicable order of succession.

§2.17 Cooling-Off from Executive Service

During any period in which this Constitution bars a person from holding or seeking the office of Civic Consul or Legat Consul under a cooling-off requirement, that person may not serve in any other capacity within the executive branch, including as a minister, domain officer, or in an acting executive capacity. This section is the express exception to §7.4(9) for executive branch service; it does not bar service in the Legislature, the judiciary, or any other constitutional office for which the person is otherwise eligible.

§2.18 Domestic Insurrection

Where armed insurrection against the constitutional order occurs within the Republic, both Consuls act within their respective domains and the Council of Ministers convenes and remains in session for the duration. Neither Consul may direct the other's domain. The Civic Consul reports to the Assembly at intervals defined by statute for as long as the response continues, as the Legat Consul reports to the Senate under §14.2. No report under this section may be omitted on grounds that the response is ongoing. This section confers no authority beyond that already held under §2.1 and §2.5.

Article III — The Legislature

§3.1 The Legislature

The Legislature comprises two chambers: the Assembly and the Senate. All legislation originates in the Assembly. The Senate reviews, may amend within the subject matter of the bill, and must act on every Assembly-passed bill within the period defined by statute, not to exceed 90 days — inaction triggers automatic deemed approval. In the absence of a statutory period, the Senate must act within 90 days of receipt. The Senate may, by majority of full seated membership, extend the review period for any bill by one additional period not to exceed 30 days, with stated cause published to the NRS; no further extension is available and deemed approval applies at expiry. Neither chamber may indefinitely delay business assigned to it by this constitution.

§3.2 The Assembly

(1) The Assembly is the proportionally elected chamber. Both States and Territories send voting members. Seats are allocated by the Webster method based on population, with a minimum of one seat per State and Territory. The constituency divisor is established and may be adjusted by statute, subject to the minimum-seat guarantee.

(2) The census, conducted every ten years by a statutory independent agency, is the basis for reapportionment. The LM audits the census and allocation process.

(3) The Assembly selects a Speaker from its own members by a method it establishes, provided the Speaker holds the support of a majority of full seated membership; the Speakership is a standing office, and its holder serves as Acting Civic Consul under §2.5 and §2.6.a. Quorum is a majority of full seated membership. The Assembly establishes its own internal procedures.

(4) Members serve two-year terms. No member may serve more than six consecutive terms without sitting out one full electoral cycle; upon return, a member may serve up to three additional terms, after which no further service in the Assembly is permitted.

(5) Any Assembly member who resigns, is expelled, or is removed by state recall at any point during a term shall be deemed to have served that full term for purposes of the consecutive-term limit.

(6) Mid-term vacancies in Assembly seats are filled by special election administered by the Elections Panel; the Legislature establishes timing and procedures by statute, ensuring no seat remains vacant within the period defined by statute, not to exceed 90 days. The Assembly may expel a member by 2/3 vote of full seated membership; expulsion is published to the NRS and is effective immediately.

(7) A State may establish by law a recall mechanism for its Assembly members; any such mechanism must operate as a political process, not a judicial proceeding, must not violate this Constitution, and must place the final recall decision with the State legislature or the State's eligible voters; no recall may proceed on the decision of an executive officer, administrative body, or court alone; where an Assembly member is recalled the seat is treated as vacant under this Constitution.

§3.3 Electoral Districts

States draw their own Assembly district maps subject to five criteria: population equality within reasonable tolerance; geographic contiguity; compliance with §1.6 non-discrimination; no material dilution of minority voting power; and reasonable compactness. Voter political affiliation data, voting history data, and incumbent residence may not be used as criteria in drawing district boundaries. Racial composition and other protected-class data may be considered only to the extent reasonably necessary to comply with §1.6 and the prohibition on material dilution of minority voting power. The LM reviews all maps for compliance and publishes findings to the NRS. Where a map fails, the Elections Panel draws an interim compliant map that takes effect at the next election and is retired when the State submits a compliant map. Territorial districts are drawn by the Elections Panel under the same criteria. Any citizen, State government, or parliamentary minority may challenge a map before the SC.

§3.4 Legislative Standards

Every bill must address a single, clearly defined subject. Any member or approval body in the legislative process may request an LM assessment of single-subject compliance, published to the NRS. The full text of every bill must be published to the NRS for a minimum period defined by statute before any final passage vote; a substantially amended bill resets the clock. Each chamber of the Legislature sits in regular session on every business day of the year, except for periods of recess for the purpose of constituent engagement, not to exceed 45 days per year. Each period of recess must be scheduled in advance and published to the NRS at least 30 days before it begins. Emergency sessions may be called by the Civic Consul or by petition of 1/3 of either chamber. The Legislature must establish a joint ethics committee with authority to sanction and refer members; removal requires 2/3 of the relevant chamber; under §9.1, the chamber may request an LM assessment to inform the proceeding.

§3.5 The Senate

- (1) The Senate comprises two senators per State regardless of population, elected for six-year staggered terms.
- (2) At the first Senate seating, senators are assigned to three approximately equal cohorts by public lot: the first cohort serves an initial term of two years, the second four years, the third six years; thereafter all Senate terms are six years. The lot is conducted by the Elections Panel and published to the NRS before the first senators take the constitutional oath.
- (3) No senator may serve more than two consecutive terms without sitting out one full term; upon return, a senator may serve up to one additional term, after which no further service in the Senate is permitted.
- (4) Any senator who resigns, is expelled, or is removed by state recall at any point during a term shall be deemed to have served that full term for purposes of the consecutive-term limit.
- (5) The Senate Speaker is elected by senators and may not serve more than two consecutive full Senate terms as Speaker without sitting out one full Senate term.
- (6) The Senate defines its own internal procedures. The Senate may expel a member by 2/3 vote of full seated membership; expulsion is published to the NRS and is effective immediately.
- (7) A State may establish by law a recall mechanism for its senators; any such mechanism must operate as a political process, not a judicial proceeding, must not violate this Constitution, and must place the final recall decision with the State legislature or the State's eligible voters; no recall may proceed on the decision of an executive officer, administrative body, or court alone; where a senator is recalled the seat is treated as vacant under this Constitution.
- (8) The Senate holds exclusive authority over:
 - judicial confirmation;
 - treaty ratification by 2/3 of full seated membership;

— and, in the absence of a functioning Elections Panel, administration of the consular election.

(9) The Senate may not initiate legislation, consistent with §3.1.

§3.6 Treaty and Trade Agreement Ratification

Treaty and compact agreement ratification requires 2/3 of the full seated Senate. Trade agreements concluded by the Legat Consul take effect upon approval by simple majority of both chambers; neither chamber may amend the terms of a concluded agreement. Where a treaty fails ratification, standalone domestic provisions may be transmitted to the Assembly as ordinary legislation unless the treaty is bilateral and its obligations are interdependent, in which case it must be renegotiated or abandoned in full. The Legat Consul initiates treaty withdrawal by published NRS notice. The Senate must affirm withdrawal by 2/3 of its full seated membership within the period defined by statute, not to exceed 90 days; where the Senate does not affirm within that period, the notice is void and the Legat Consul must resubmit. Indigenous treaties under Article XVI may not be unilaterally withdrawn.

§3.6.a Classification and Dispute Resolution

Where the Senate disputes the Legat Consul's classification of an international instrument as a trade agreement, the instrument is treated as a treaty pending resolution. Either party may seek expedited judicial determination of the classification; the applicable court and process are defined by statute.

§3.7 Legislative Process and Passage

Bills pass by absolute majority of the full seated membership of both chambers. Higher thresholds apply to constitutional amendments, veto overrides, removal proceedings, and other matters specified in this constitution; where a higher threshold is specified for a vote of a single chamber, it applies to the full seated membership of that chamber. The Speaker of each chamber must publish the final text of every enacted law to the NRS within the period defined by statute. All prior versions, committee reports, Monitor findings, and veto records are indexed alongside the enacted text. Where the constitution requires the Legislature to enact specific legislation and the Legislature has not done so within 1 year of the obligation arising, the LM publishes a non-compliance finding; the mandate becomes justiciable in the SC; and, for mandates whose non-fulfillment directly impairs the exercise of a right guaranteed in Article I, affected parties may bring direct constitutional claims.

§3.8 Legislative Oversight

All three Monitors have full access to legislative records, committee deliberations, voting records, and draft legislation; the Legislature may not withhold records from the Monitors. The LM publishes a constitutional compliance analysis of any enacted law during the legislative review period; members may request LM analysis of any bill at any stage; the LM does not initiate pre-enactment review on its own motion. Standing committees are mandated for constitutionally assigned functions and may not be abolished while they hold a constitutional mandate. Legislative privilege protects members from civil proceedings arising from acts performed in their legislative capacity consistent with §7.7; it does not extend to criminal conduct.

§3.9 Independent Statutory Agencies

The Legislature may establish independent agencies operating outside the authority of both executives. Where this Constitution assigns a function to an independent agency, the Legislature must establish and maintain an institution capable of performing that function. Internal organization, offices, staffing, and administration are defined by statute unless this Constitution provides otherwise, and every such statute must preserve the constitutional independence of the assigned function. Where this Constitution does not itself establish the tenure and removal rules of the principal decision-makers exercising a constitutionally assigned independent function, those decision-makers serve fixed terms defined by statute and are removable for cause only. Cause must relate to conduct, incapacity, or competence and may not include policy disagreement with the Legislature or either executive. The appointment process and oversight mechanism for each agency are established by statute in a manner consistent with this independence protection. Qualification standards must be facially neutral and may not be designed to exclude otherwise qualified candidates on the basis of policy view, party affiliation, or prior public criticism of the Legislature or either executive.

§3.12 Federal Legislative Competence

The Legislature holds general authority to legislate for the peace, order, and good governance of the Republic. It may not enact legislation that destroys the capacity of States to govern themselves as self-governing communities. Where federal law and State law conflict, federal law prevails to the extent of the conflict. The Legislature may set minimum standards that States must meet but may not direct State institutions as instruments of federal administration. Where this Constitution directs that a function, standard, procedure, or framework be established, defined, or regulated, that obligation is fulfilled by statute unless this Constitution specifies otherwise. No executive or administrative act may substitute for legislation where this Constitution requires statutory action.

§3.13 Delegation of Authority

The Legislature may by statute delegate defined authorities within its legislative competence to the Legat Consul, the Civic Consul, or independent agencies established under §3.9. Any delegation must specify the exact scope of authority delegated, the conditions on its exercise, and a maximum duration not to exceed the term of the Legislature that enacted it. The Legislature may rescind any delegation by simple majority of both chambers at any time; no recipient of delegated authority may obstruct or condition rescission. No delegation creates a permanent transfer of legislative competence. Every exercise of delegated authority is published to the NRS with attribution to both the legislative grant and the recipient's act. The EM audits the exercise of all delegated executive authority annually and publishes findings to the NRS.

Article IV — The Judicial Architecture

§4.1 Court Structure

The Republic's judiciary operates at three levels: district courts, appellate courts, and the Supreme Court. The Legislature may establish, abolish, and define the jurisdiction of inferior courts by statute. The abolition of an inferior court does not take effect as to any judge currently serving on that court until their term expires or they are removed for cause under §4.2; judges whose courts are abolished may be reassigned to other inferior courts by the Civic Consul with Senate confirmation at 2/3. States may maintain specialized court structures; any constitutional question arising in any proceeding may be referred to the SC. Courts act only on cases brought by a party with a concrete, articulable injury. Judges may not issue advisory opinions. Organizational standing is available where at least one member would individually have standing and the claim is germane to the organization's established constitutional purpose.

§4.2 Judicial Appointments and Independence

(1) Any citizen meeting the eligibility criteria established in §9.4.a may apply to the Elections Panel to enter the Judicial Pool; the JM's ongoing audit encompasses the Judicial Pool. Exceptions to pool eligibility — including persons currently holding government positions, those with disqualifying financial interests, and those removed from a court within a recent period — are defined by statute.

(2) The Civic Consul nominates inferior court judges from the Judicial Pool maintained by the Elections Panel under §9.8. The Civic Consul must nominate within the period defined by statute following a vacancy, not to exceed 90 days where no statutory period has been defined. The Senate confirms by 2/3.

(3) Inferior court judges serve a single non-renewable term of 12 years and may be removed only for cause. Cause includes constitutional breach in the exercise of judicial authority, demonstrated permanent incapacity, serious misconduct, or other conduct- or competence-based grounds established by statute; policy disagreement with judicial decisions does not constitute cause. The Legislature may establish a mandatory retirement age by statute, not below 70.

(4) Judicial removal occurs through two tracks: legislative removal by 2/3 of both chambers on grounds constituting cause under subsection (3), with either chamber permitted to request an EM assessment under §9.1 to inform the proceeding; or judicial discipline through a process established by statute under SC oversight, which may impose discipline including removal for cause consistent with subsection (3). No Monitor assessment or finding is a prerequisite to either track.

(5) No public official may direct, threaten, or seek to influence a judge's decision in any pending matter. Judicial compensation may not be reduced during a judge's term.

§4.3 The Supreme Court

The Supreme Court consists of the number of justices established by statute, which may not be fewer than five. Justices serve single non-renewable 12-year terms arranged in staggered classes as nearly equal in size as practicable. The Legislature may increase or decrease the number of justices only by a statute requiring 2/3 of both chambers. Any seat added must be filled within 18 months from the statute's effective date or expires by constitutional operation. A decrease takes effect only through natural attrition and may never remove or shorten the term of a sitting justice. Where the Court is equally divided, the challenged ruling of the lower court or government body stands. A majority of the SC's seated justices — including any Temporary Associate Justices — constitutes quorum for ordinary decisions. Constitutional questions require a minimum of five participating justices.

§4.3.a Supreme Court Justice Removal

A Supreme Court justice may be removed only for cause. Three grounds constitute sufficient cause: constitutional breach in the exercise of judicial authority; demonstrated permanent incapacity; or serious misconduct.

Either chamber may request a Monitor assessment under §9.1 to inform the proceeding. No Monitor assessment or finding is a prerequisite to removal.

Removal requires a 2/3 vote of both chambers in a concurrent vote after the stated grounds are published to the NRS.

No removal vote may be held within 180 days of a major national election without prior SC review under §4.5; the SC must rule within 48 hours of petition.

Judicial disagreement — however profound — does not constitute grounds for removal; the independence of Supreme Court judicial judgment is absolute and may not itself be invoked as grounds for removal.

§4.4 Supreme Court Selection

(1) SC justices are nominated by the Civic Consul from the Judicial Pool maintained by the Elections Panel under §9.8 — any pool member meeting the statutory qualifications for Supreme Court appointment is eligible for SC nomination.

(2) The Civic Consul nominates within the period defined by statute following a vacancy, not to exceed 90 days for an anticipated vacancy or 60 days for an unanticipated vacancy.

(3) The Senate must vote within the period defined by statute following nomination, not to exceed 120 days. The JM's ongoing audit of the Judicial Pool is available on the NRS and the Senate may consider any published JM findings on the nominee. No deemed confirmation applies to a nomination.

(4) Upon any SC vacancy, the most senior eligible Appellate Court judge by continuous service becomes Temporary Associate Justice immediately by constitutional operation, with full voting rights until the vacancy is filled; where two or more eligible judges have equal continuous service, the oldest by age serves. The change is recorded to the NRS as soon as possible. The Civic Consul may not nominate the serving Temporary Associate Justice for the seat they are temporarily filling through the ordinary appointment process; this bar does not affect a public confirmation ballot under this Article.

(5) If the Civic Consul has not made a nomination by the applicable deadline, the Temporary Associate Justice remains in office. At the later of the next regular federal electoral period or the expiration of the nomination period, the Temporary Associate Justice is submitted to the Assembly. The Assembly has 30 days to approve public confirmation by 2/3 of its full seated membership. Approval certifies the Temporary Associate Justice for placement on the ballot; if the Assembly does not act within 30 days, certification for the ballot occurs automatically. Until the Elections Panel certifies the Temporary Associate Justice for the ballot, the Civic Consul retains authority to make an ordinary nomination. Elections Panel certification closes that supersession window. Public confirmation requires 60% of votes cast under §7.3. If the voters reject confirmation, the serving Temporary Associate Justice steps down, the next eligible Appellate Court judge becomes Temporary Associate Justice by constitutional operation, and the vacancy process restarts.

(6) A confirmed justice serves a single non-renewable 12-year term from the date of confirmation. A mid-term replacement serves only the remainder of the original term.

(7) At founding, the initial justices are assigned as evenly as practicable to staggered classes by public lot administered by the Elections Panel.

§4.4.a Senate Bypass — Public Confirmation

Where the Senate has failed to vote on a nomination within the period required under §4.4, the Civic Consul may — with 2/3 Assembly consent — place the serving Temporary Associate Justice on the next federal electoral period ballot for public confirmation. Confirmation requires 60% of votes cast under §7.3; the justice's seniority-based designation is published to the NRS as ballot information. If confirmed, the justice serves the remainder of the original term and the Senate's confirmation authority for that seat is extinguished. If not confirmed, the justice steps down, the next most senior Appellate Court judge auto-designates, and the process may repeat. Senate confirmation of a Judicial Pool nominee before the public vote is certified ends the bypass immediately. The Temporary Associate Justice may publicly campaign for their own confirmation once placed on the ballot under this section. A public confirmation vote under this section is not an election; §8.1's electoral finance framework does not apply. Rules governing advocacy conduct, contributions, and disclosure during a public confirmation vote are defined by statute, which must maintain the foreign contribution prohibition and disclosure requirements consistent with the principles of §8.1.

§4.5 Judicial Review and Scope

- (1) Courts have authority to declare legislative acts, executive orders, and administrative decisions unconstitutional and void. No political actor may override a constitutional ruling. The SC identifies the constitutional defect; the Legislature may respond by enacting legislation that addresses it.
- (2) Courts decide constitutional questions, not policy questions — Where a statute is ambiguous, courts apply the interpretation most consistent with this constitution. Courts may not rewrite clear statutory language.
- (3) Monitor findings published to the NRS are admissible and must be given due consideration; where a court's conclusions differ from a prior finding, the court must address the inconsistency in its written decision.
- (4) Any person with a concrete, articulable legal injury has the right to seek relief from a court of competent jurisdiction; the Legislature may not structure the judicial system in a manner that leaves any category of legal injury without a forum for relief.
- (5) The SC has original jurisdiction over:
 - constitutional disputes between States, between a State and the federal government, and constitutional challenges to federal statutes;
 - disputes between the Legat Consul and Civic Consul concerning their respective constitutional domains under §2.1;
 - constitutional challenges involving constitutionally independent institutions where their independence protections make inferior court review structurally inappropriate;
 - emergency rights claims brought directly under §16.2;
 - and disputes over the consistency of ratified amendments with entrenched provisions under §17.3.
- (6) The SC holds jurisdiction over constitutional challenges to immediate defensive military authority under §2.2 during active operations and must rule within the period defined by statute, not to exceed 48 hours. The SC establishes its own procedures for the composition and conduct of this expedited review.
- (7) Where conflict between constitutional actors creates a risk of suspension of lawful governance or constitutionally mandated essential services, the constitutional default is continuity at existing scope pending formal resolution. No constitutional actor may use a refusal to certify, approve, or coordinate to achieve the functional suspension of a constitutional obligation. The SC holds expedited jurisdiction over any dispute in which continuity of lawful governance is at immediate risk.

(8) Where this Constitution establishes a deadline for an SC ruling, a majority of seated justices may file an extension request within that period specifying the reason and additional time required, published to the NRS; the maximum extension is defined by statute, not to exceed 30 days per extension. The SC may issue interim protective orders of limited scope in matters within its original jurisdiction where delay would cause irreparable harm pending its full ruling, published to the NRS.

(9) The SC's failure to rule within any constitutionally required period produces no substantive constitutional outcome by operation of that failure; the petitioning party may reinitiate under any procedure applicable to the underlying matter.

§4.6 Judgment Recognition

Judicial judgments, official records, and authenticated documents are recognized across all jurisdictions within the Republic. A judgment valid in one jurisdiction must be recognized in all others. Non-recognition grounds are exhaustive: the issuing court lacked jurisdiction; the judgment was obtained by fraud; or enforcement would require an act defined by the Legislature as categorically unenforceable. Judgments contrary to Article I are void by operation of §17.4. A judgment or status order published to the NRS is self-authenticating in any Republic court and takes immediate effect without re-registration. No State or Territory may discriminate in recognition based on the nature of the parties or the subject matter recognized by the issuing jurisdiction.

Article V — Citizenship and National Identity

§5.1 Citizenship

Citizenship is acquired as provided in this section by parentage, protection against statelessness, or naturalization. A child is automatically a citizen if at least one parent is a citizen or legal resident at birth. Citizens acquire their full citizenship rights, including the right to vote and stand for office, at 18. Citizenship may not be stripped from any citizen except as provided in this section. Where a child born on Republic territory would hold no other citizenship, or would otherwise be stateless regardless of birthplace, citizenship is granted from birth. A legal resident may earn citizenship after the continuous residency period and clean legal record established by statute, upon passing a standardized assessment of civic and constitutional proficiency established by statute. A legal resident may alternatively earn citizenship through honorable completion of military or national service. The assessment tests knowledge of constitutional principles and civic structure — not political opinions or cultural loyalty. It is administered by a statutory independent agency under §3.9. No citizenship may be revoked as punishment, and the Republic may not manufacture statelessness as a punitive tool. Citizenship acquired by naturalization may be revoked only upon a judicial finding, by clear and convincing evidence, that it was obtained through material fraud in the application itself. No revocation may occur where it would render the person stateless. Revocation does not extend to any person who acquired citizenship derivatively through the naturalized person. A child born before a parent acquired legal residency or citizenship, who accompanies that parent to the Republic within a window defined by statute at not less than five years, receives derivative status.

§5.1.a State and Territory Voting Citizenship

A citizen of the Republic is, at all times, a voting citizen of exactly one State or Territory: the one of their residence or domicile as defined by that State's or Territory's statute, consistent with this Constitution and federal law. No statute may leave a citizen of the Republic without a State or Territory of voting citizenship. Resolution of conflicting claims of voting citizenship is established by statute. Recognition as a voting citizen of a State or Territory terminates any prior recognition in another.

§5.2 Legal Resident Rights

Legal residents hold a Residency Credential allowing them to work, enter contracts, own property, and access social state systems under Article XII. They hold all Article I rights as Inhabitants. They do not hold federal voting rights or the right to stand for federal office. No child of a citizen or legal resident may be deported regardless of the child's own documentation status.

§5.3 Custodial Care of Citizen Children

Where a parent or guardian who is the primary caregiver of a citizen child is removed from the Republic, the Republic accepts responsibility for that citizen child — housing, care, and connection to remaining family. The Republic may not separate citizen children from their sole caregivers without providing for them. Where a removal order would deprive a citizen or Inhabitant child of their primary caregiver, that order is stayed pending resolution of custodial arrangements.

Article VI — Immigration and Residency

§6.1 The Two-Stage Immigration System

Every immigration application must clear two sequential stages: State sponsorship and federal certification. Legal residency requires passing both stages. States retain discretion over whom they sponsor but may not apply sponsorship criteria that violate §1.6. Federal certification categories are established by statute; no ideological screening or nationality-based quotas may be applied at any stage. Any denial must specify the precise ground in writing. Once an applicant clears both stages, the Civic Consul must ministerially issue residency credentials; interference with credential issuance by either executive is constitutionally prohibited. The Legislature may establish a Federal Sponsorship Category where federal agencies serve as the State sponsorship stage for applicants serving a defined federal interest; this does not bypass federal certification. The Legislature may set aggregate limits on total applications received and processed in any period, provided limits are applied without §1.6 discrimination. Asylum proceedings under §6.3 are exempt from the State sponsorship stage — no State's refusal to sponsor can extinguish a §1.21 asylum claim.

§6.2 Enforcement, Removal, and Appeals

- (1) Only the federal government may remove individuals from the Republic. Removal occurs only for violations of laws the Legislature has defined — executive detention without statutory basis is unlawful detention subject to habeas corpus.
- (2) Federal certification denials are judicially challengeable on three grounds:
 - criterion not established under the federal certification mandate;
 - discriminatory grounds contrary to §1.6;
 - or procedural violation affecting the outcome.
- (3) State sponsorship denials are not reviewable on the merits of the sponsorship decision but are challengeable as constitutional violations where made on §1.6 discriminatory grounds — a court finding discrimination may order reconsideration free of discriminatory criteria but may not compel sponsorship.
- (4) Court decisions on State sponsorship challenges brought on §1.6 grounds are published to the NRS; personally identifying information of applicants who are not public figures as defined by statute is protected consistent with §1.8.
- (5) Where federal certification is denied on national security grounds, a reviewing court may examine the classified assessment in camera to determine whether it constitutes a credible, specific, and documented security concern; where the court finds the assessment insufficient, the denial is vacated and federal certification must be reconsidered on the remaining criteria.
- (6) All removal proceedings and challenge proceedings under this section carry the right to legal representation; where an applicant cannot afford representation, counsel is appointed at public expense.

§6.3 Asylum and Protection

- (1) Asylum proceedings operate on a separate constitutional track from the dual-gate system. Any person who files an asylum claim under §1.21 is an Inhabitant from the date of filing — entitled to Article I protections and social state access.
- (2) Claims must be determined before any removal order takes effect. A claim filed solely to delay a final removal order may be expedited under procedures the Legislature defines, consistent with the right to a fair hearing.
- (3) Where the independent federal asylum adjudicative process grants protection, the person receives federal residency credentials by operation of that determination; State sponsorship and federal certification are not required conditions.

(4) The manner of entry does not affect the right to claim asylum or have that claim determined. No penalty arising solely from irregular entry may be imposed on a person whose claim is pending or has been granted.

(5) Asylum proceedings must provide a qualified adjudicator; interpreter access; the right to present evidence and witnesses; the right to legal representation with appointed counsel at public expense where the applicant cannot afford representation; a written decision with grounds; and a right of appeal — regardless of point of entry. The asylum proceedings statute must ensure accessibility to persons in Territories and geographically remote areas.

(6) The Legislature shall establish by statute an independent federal asylum adjudicative process. The adjudicative body and its adjudicators must be institutionally independent from immigration enforcement, removal operations, foreign affairs, intelligence, and national-security operations. Adjudicators must receive tenure, removal, compensation, and decisional-independence protections sufficient to preserve impartial adjudication. The Legislature may determine organization and procedure but may not diminish independence, access, review, or the protections guaranteed by this section.

(7) An unaccompanied minor arriving in the Republic is an Inhabitant from the moment of contact and holds full §1.21 protection. A federal legal guardian must be appointed by an independent federal court with jurisdiction over the point of contact within 72 hours.

(8) No unaccompanied minor may be detained in a facility not specifically designated and resourced for children.

§6.3.a Unresolvable and Security Cases

The Legislature must define a minimum status, material conditions, and periodic judicial review for persons subject to final removal orders that cannot be executed — because the destination country will not accept them or execution would violate §1.21. Indefinite stateless detention is constitutionally prohibited. Where the independent federal asylum adjudicative process grants §1.21 protection to a person who poses a documented security threat, removal remains constitutionally barred and indefinite unreviewed detention is not available. Detention is permitted subject to: mandatory judicial review by an independent federal court within 90 days of initial detention; mandatory review every 180 days thereafter; statutory minimum conditions of humane treatment; and, for detention beyond 5 years, an affirmative judicial finding at each subsequent review that no less restrictive alternative exists; absent that finding, the person is released to the statutory minimum-status conditions defined under this section.

Article VII — Elections and Federal Office

§7.1 Consular Election System

- (1) The Legat Consul is elected through two concurrent requirements: a national RCV majority and a State plurality qualification. A candidate wins outright by satisfying both.
- (2) Where a candidate's national RCV majority reaches or exceeds 60% of votes cast, the State plurality requirement is waived.
- (3) Where no candidate wins outright, a runoff is conducted between the two candidates with the highest national first-preference totals, determined by national RCV only with no State plurality requirement; where two candidates are tied for the second position, the Elections Panel determines which advances by lot.
- (4) Where the runoff itself produces a tied result, the Elections Panel determines the winner by lot in a public session; the result is published to the NRS and is final. The Elections Panel administers and certifies all consular elections.
- (5) Territory citizens vote in consular elections and their votes count in the national RCV total; Territories are not included in the State plurality calculation.
- (6) A candidate satisfies the State plurality requirement by receiving more first-preference votes than any other candidate in a majority of the Republic's States. The Elections Panel certifies State-by-State first-preference results as part of overall election certification.
- (7) Certification is final and may be challenged only before the SC within 14 days of certification by either candidate, any State or Territory government on the ground that the certification does not accurately reflect votes cast within its jurisdiction, or the Elections Panel itself where it identifies a material error in its own certification.

§7.2 Federal Elections

- (1) Federal elections are held at regular intervals: Assembly elections every two years; Senate elections on the staggered six-year cycle; Consular elections every four years.
- (2) All federal elections use Ranked Choice Voting — majority required, not plurality; Consular elections use RCV within the framework of §7.1, which adds the State plurality requirement.
- (3) The Legislature defines by statute the specific timing, duration, and structure of the federal electoral period within these constitutional floors.
- (4) Federal elections are administered by the States within standards established and enforced by the Elections Panel; all state election systems must connect to and operate through the National Voting System, free from executive interference.
- (5) The Legat Consul may not declare, postpone, or influence the scheduling of elections — including declaring emergencies that have the effect of delaying them. No State may take any action that reduces NVS access, functionality, or availability within its territory. States may offer early voting, mail-in ballots, and alternative participation methods provided all methods connect to the NVS and meet Elections Panel standards.
- (6) The Republic shall provide such financial and technical assistance as is necessary to ensure every State has the capacity to procure certified equipment and meet federal election standards; the Legislature establishes the assistance mechanism and eligibility criteria by statute; the Elections Panel certifies whether assistance has been sufficient to bring each State into compliance.

§7.2.a Special Elections and Postponements

Special elections for vacancies are administered by the Elections Panel under procedures established by statute. Where the Elections Panel certifies that elections cannot be held across a substantial portion of the Republic due to a natural disaster or catastrophic infrastructure failure, the Legislature may by 2/3 of both chambers in a concurrent vote postpone the affected election for a period not to exceed 90 days, publishing the determination to the NRS; the mandates of sitting members extend automatically until certification of the postponed election. The Elections Panel publishes a finding when conditions have normalized sufficiently for elections to proceed; elections must be held within 30 days of that publication. Either chamber may seek expedited judicial review of the Elections Panel's finding; the applicable court and expedited process are defined by statute. No further postponement may be granted without a new Elections Panel finding of impossibility and a new 2/3 legislative determination.

§7.3 Electoral Supermajority Threshold

60% of votes cast is the constitutional threshold for all direct electoral supermajority determinations. This threshold applies wherever this Constitution requires a supermajority outcome in a citizen vote rather than a legislative vote: the consular first-round threshold at which the State plurality requirement is waived (§7.1); public confirmation of a Supreme Court justice under the Senate bypass mechanism (§4.4.a); public recall of the Legat Consul under §2.13; and the national independence referendum under §15.9. The Legislature may not set a higher or lower threshold for any direct electoral supermajority determination without a constitutional amendment. This provision governs the supermajority threshold itself. It does not govern participation floors or turnout ceilings, which are established in the provisions requiring them, and does not govern the optional referendum under §13.1, which requires only a simple majority of votes cast.

§7.4 Eligibility and Disclosure for Federal Office

- (1) Every candidate for federal office, and every person selected or elevated to a federal office without standing for election, shall disclose their criminal history on the official candidacy or acceptance filing, under penalty of perjury; the disclosure is published to the NRS and is available to voters and to any body that selects the officeholder.
- (2) A person who has made a current disclosure for one federal office satisfies this requirement for elevation to another so long as the disclosure remains accurate.
- (3) A false or incomplete disclosure is itself a federal offense.
- (4) No criminal conviction bars a person from federal office except as provided in this section; the weight of a disclosed history is for the voters, or for the selecting body, to judge.
- (5) A person convicted of insurrection against the Republic, rebellion against the Republic, treason against the Republic, or subversion of a federal election is barred from holding any federal office. These grounds are exhaustive; no other conviction bars a person from federal office, and any change to these grounds requires constitutional amendment.
- (6) This bar requires a conviction, not an accusation or a pending charge.
- (7) A person removed from a federal office by an affirmative removal process -- including impeachment, a for-cause removal, a constructive vote of no confidence, or recall -- may not hold or seek that office until the remainder of the electoral cycle in which the removal occurred and one full electoral cycle thereafter have passed. The ordinary expiration of a term, and loss of office through an election, are not removals for purposes of this section.
- (8) Where this Constitution bars a person from holding an office, no election, succession, elevation, designation, or automatic assumption may place that person in that office or in an acting exercise of its authority, except where this Constitution expressly provides otherwise. Where an order of succession or acting authority would otherwise place a barred person, the role passes to the next eligible person in the applicable order as if that person were unable to serve.

(9) A cooling-off period constitutionally required before a person may again hold or seek a specific office does not bar that person from holding or seeking any other constitutional office for which they are otherwise eligible during that period, except where this Constitution expressly provides otherwise.

(10) Any candidate removed from a federal ballot by the Elections Panel may appeal to the Appellate Court within 14 days. The Court reviews only whether the applicable eligibility criteria were correctly applied and must rule within 21 days.

§7.5 Removal from Federal Office

Where this Constitution governs the tenure or removal of a federal officeholder, that person may be removed only through a removal mechanism provided by this Constitution or through a statutory mechanism that this Constitution expressly authorizes.

No additional removal mechanism may be created by statute.

Criminal liability remains separately pursuable.

§7.6 Continuity and Acting Service

For every office established by this Constitution with a fixed term, the successor selected under the applicable constitutional process begins the term at the precise moment the incumbent's term concludes. The applicable election, selection, or confirmation process must be completed with sufficient lead time to ensure seamless succession.

A person serving in an acting capacity for an office established by this Constitution must satisfy all substantive qualifications for that office, except completion of the election, selection, or confirmation process otherwise required to hold it permanently. The acting mechanism for each office is governed by provisions applicable to that office.

§7.7 Official Capacity Protection

Constitutional officers and persons acting within the authority of a constitutional office in the performance of official functions hold protection from civil proceedings arising from those official acts. This protection does not extend to criminal conduct, acts performed outside official capacity or authority, or acts that violate any provision of this constitution. Nothing in this provision bars legal remedies otherwise available under this constitution or statute.

§7.8 Separation of Branch Authority

No person may exercise the voting or decisional authority of more than one branch of government at the same time; a person holding or acting in an office of one branch may not cast a vote or exercise a decisional power reserved to another branch for so long as they hold or act in that office. This section does not bar a person from holding a seat that carries no exercisable vote during such service, nor from resuming an office or vote upon leaving the position that created the conflict.

§7.9 Inviolability of Electoral Mandates

Elected constitutional officers serve their constitutionally defined terms. No act of the Legislature, either executive, any court, any Monitor, or any administrative body may shorten, suspend, or terminate an elected mandate except through expulsion by the relevant chamber where this Constitution provides it, recall under a State mechanism recognized by this Constitution, or removal under another mechanism expressly provided by this Constitution. Any mechanism enabling the people themselves to shorten an elected mandate not already provided in this Constitution requires a constitutional amendment under Article XVII and may not be established by ordinary statute. Expulsion, recall, and removal under this Constitution are civil and political processes; they do not constitute criminal or civil legal proceedings and do not protect the removed officer from criminal prosecution or civil liability for underlying conduct.

§7.10 Ethics and Financial Disclosure

(1) A financial interest includes any holding, income source, liability, business relationship, or similar economic interest; a financial interest is disqualifying where it creates a direct and material conflict between an officer's personal economic interest and the impartial exercise of official duties. Statute may further specify categories and thresholds consistent with this standard.

(2) Except for Monitor Generals as provided in Article IX, all constitutional officers must disclose financial interests, holdings, income sources, and liabilities to their respective Monitor — the LM for members of the Legislature; the EM for both Consuls, executive branch officers, military officers, and principal Monetary Authority decision-makers; and the JM for judicial officers — within the period defined by statute after taking office and annually thereafter. Disclosure records are published to the NRS.

(3) Any officer with a direct and material financial interest in a decision within their authority must recuse themselves, subject to §7.11.

(4) Constitutional officers may not accept gifts above a de minimis threshold defined by statute. Gifts above that threshold must be disclosed and transferred to the Republic as provided by law; an official gift is property of the Republic, not of the officeholder.

(5) Each Monitor may investigate alleged violations within its mandate and publish findings to the NRS; where findings warrant further action, the Monitor refers the matter to the appropriate authority.

§7.11 Codes of Conduct and Recusal

The Legislature may by statute establish codes of conduct and procedural rules for any constitutionally established office outside the Legislature, including standards for recusal from specific proceedings, disclosure obligations beyond those required by this Article, and disciplinary procedures short of removal. No such procedure may remove an officer, suspend or diminish constitutionally assigned authority, alter constitutional tenure, or otherwise operate as an additional removal mechanism contrary to §7.5.

Such rules must be consistent with the independence protections of the relevant office and may not be used to constrain the substantive exercise of any constitutionally assigned function.

In the absence of statute establishing recusal standards for a given office, an officer must recuse where their impartiality could reasonably be questioned. An officer who fails to recuse in circumstances requiring recusal — whether defined by statute or this default standard — acts in constitutional breach; the act or determination in which they participated remains subject to challenge on that ground.

No statute enacted under this provision may be amended or repealed within the legislative session immediately following the session of its enactment; thereafter, amendment or repeal requires a 2/3 majority of both chambers.

§7.12 Post-Service Restrictions

Constitutional officers may not, for a period defined by statute after leaving office — which may not be less than two years — engage in activity that monetizes or draws on non-public information, relationships, or access accumulated during service. The respective Monitor audits post-service activities within its mandate for compliance and publishes findings to the NRS; enforcement is through the appropriate legal authority.

§7.13 Federal Public Service Ethics

The Legislature must by statute establish disclosure and recusal requirements for federal government employees and military personnel whose duties create material conflict-of-interest risk, including procurement, regulatory, and senior civil service positions. The respective Monitor audits the administering agency's compliance with this requirement and publishes findings to the NRS; this audit is systemic and does not require individual-filing review by the Monitor.

§7.14 Compensation of Federal Officials

No federal official may set their own compensation or the compensation of their direct supervisors. Official compensation is set by statute and is a public record on the NRS. The Legislature may set the compensation of elected constitutional officers by statute; no such change takes effect until after the next election for the relevant office following the session in which it was enacted. Official benefits and accommodations reflect the functional requirements of the office, not the status of the officeholder; no benefit may exceed what the function genuinely requires.

§7.15 Authority by Constitutional Operation

Authority conferred, transferred, or assumed by operation of this Constitution vests at the moment the constitutional condition giving rise to it occurs. No oath, acceptance, publication, appointment instrument, or other implementing act is required unless this Constitution expressly makes publication or another act a condition of effect. A resulting change in office or authority must be recorded to the NRS as soon as possible. The NRS record is the authoritative public record of the change and does not itself create the authority.

Article VIII — Electoral Finance and Campaign Conduct

§8.1 Electoral Finance

All contributions to electoral campaigns must be disclosed in full to the Elections Panel, including the identity of every contributor and the amount given, without threshold or exception. The Elections Panel publishes contribution records to the NRS; publication may present contributions below a threshold defined by statute in aggregate or generalized form to protect the privacy of individual contributors, but no contribution may be withheld from disclosure to the Panel. Anonymity in electoral finance is prohibited. Individual contributions to electoral campaigns are capped at a level defined by statute. Corporate, organizational, and foreign contributions are prohibited; the prohibition on foreign contributions applies to any person or entity that is not a Republic citizen or resident. Independent expenditures made in support of a campaign are subject to the same disclosure requirements as direct contributions; coordinated expenditures are treated as direct contributions. Financial contributions to electoral campaigns are not constitutionally protected speech under §1.5 and are not protected as associational activity — the regulation of electoral finance is explicitly reserved from both speech and associational protection.

§8.2 Campaign Conduct

Candidates for constitutional office campaign in compliance with published Elections Panel conduct standards, which include: prohibition on impersonating other candidates; prohibition on vote suppression activities; and prohibition on interference with the electoral administration process. Campaign communications must clearly identify their sponsor. This constitution does not bar private civil litigation arising from campaign communications. Any attempt by a foreign government, foreign national, or foreign-controlled entity to influence a Republic election is a constitutional violation; candidates who knowingly accept foreign assistance are disqualified from that election cycle. Constitutional officeholders standing for election in a different race must observe strict separation between official functions and campaign activity; official resources may not be used for campaign purposes. The Elections Panel publishes findings of violation of the prohibitions enumerated in this section to the NRS; the Legislature shall define sanctions for such violations by statute. This enforcement authority does not extend to the truthfulness or content of campaign communications, which remain subject only to private civil litigation as provided above.

§8.3 Public Spectrum Access for Campaigns

Licensees operating on public broadcast spectrum — including television, radio, and licensed carriers of automated political communications — shall provide equal free access to qualified candidates during the federal electoral period. The terms and quantity of access are defined by statute. The Elections Panel certifies compliance and publishes findings to the NRS.

§8.4 Public Campaign Financing

The Legislature shall by statute establish a public campaign financing system available to all qualified candidates for federal office on equal terms. The system exists to make candidacy possible for those without existing access to private funding; it is not intended to fund a campaign in full. Public support is provided as an initial allocation sufficient to establish a viable candidacy, set by statute and reviewed each electoral cycle. Acceptance of public support does not bar a candidate from private fundraising under §8.1, and no candidate may be disadvantaged in eligibility, ballot access, or access under §8.3 by reason of participating. The Elections Panel administers the system and publishes annual compliance findings to the NRS.

Article IX — The Monitors

§9.1 Three Monitors

The Republic maintains three constitutionally independent Monitors — Legislative (LM), Executive (EM), and Judicial (JM) — each selected by bodies other than those it oversees. Monitors hold an information-only mandate: they observe constitutional processes, verify compliance, and publish findings to the NRS. Findings are not binding on any constitutional actor and are not a prerequisite for any legal proceeding or governmental function. Each Monitor General serves a 10-year non-renewable term with a constitutionally protected funding floor. Failure of a Monitor to act does not extinguish constitutional authority or suspend any constitutional obligation. Any constitutional officer, chamber, or body may request a focused assessment from any Monitor within that Monitor’s mandate; the Monitor publishes the assessment by the requested date where practicable; a requesting party may proceed whether or not the assessment has been published. Persistent non-responsiveness to reasonable requests may be published by the other two Monitors as a non-responsiveness finding to the NRS. Once a Monitor undertakes work under constitutional authority, the work must be completed and published even if it becomes late, moot, withdrawn, or overtaken by events. A missed deadline may affect any consequence expressly attached to the deadline but does not erase the publication duty. Work may be discontinued only where completion has become factually impossible; the reason for discontinuation and all completed work product must still be published to the NRS.

§9.1.a The Legislative Monitor

The LM audits the Legislature for fiscal accuracy and constitutional compliance. Responsibilities include auditing the population census for constitutional compliance; reviewing Assembly district maps against §3.3 criteria and publishing germaneness analyses; auditing the Elections Panel’s administration of the referendum eligibility process; auditing legislative mandate compliance; and publishing an annual compliance report to the NRS.

§9.1.b The Executive Monitor

The EM audits both executives and the Monetary Authority. Annual responsibilities include: military compliance assessment covering whether military force was used for an authorized purpose under §14.1, whether legislative authorization and allocation requirements under §14.2 were observed, whether the §2.3 intelligence warrant requirement was maintained, and whether all military orders were published to the NRS within the required period; conducting factual clemency reviews when requested under §2.12; reviewing disclosure records for constitutional appointments; and auditing electoral finance within the period defined by statute following any election. The EM audits constitutional officers for dereliction — failure to perform a constitutionally mandated function within the required period where that failure was not caused by circumstances genuinely beyond the officer’s control; political disagreement with a constitutional requirement is not a defense.

§9.1.c The Judicial Monitor

The JM audits the courts for judicial scope and independence, and conducts annual audits of the Elections Panel for electoral integrity compliance, including the administration of the Judicial Pool and all constitutional pools. The JM reviews compliance with treaty obligations under Article XVI and Associated Community compact agreements under Article XX.

§9.1.d Monitor General Term Expiry and Incapacity

A Monitor General's constitutional authority terminates automatically at the moment their term expires — no further act or proceeding is required. Any official act taken after term expiry is constitutionally void. Where an unexpected vacancy arises mid-term — through death, resignation, removal, or a judicial determination of incapacity under this section — the most senior eligible member of the affected Monitor's candidate pool by continuous pool tenure who accepts designation serves as Acting Monitor General until a successor is confirmed under §9.3; where two or more pool members have equal continuous pool tenure, the tiebreaker is defined by statute. The Acting Monitor General holds full constitutional authority of the office. The Acting Monitor General is not eligible for permanent appointment to the position in which they serve; upon conclusion of acting service they return to the candidate pool. The JMC records the designation and both executives are notified immediately; neither record nor notice conditions the designation's effectiveness. Pool membership satisfies the eligibility requirement of §7.6. Where the other two Monitors jointly assess that a Monitor General is unable to exercise the functions of office, they shall publish the assessment to the NRS and petition the SC for expedited determination. The SC shall determine incapacity within 48 hours. Upon a determination of incapacity, the affected Monitor General's authority is suspended by constitutional operation and the acting mechanism under this section activates immediately. The suspension ends upon an SC determination that the incapacity has ended, or upon the commencement of a successor's authority under this Article. Where a Monitor General's authority is suspended under §9.9, the acting mechanism under this section activates for the duration of the suspension. Suspension does not affect the Monitor General's compensation, benefits, or the running of their term.

§9.2 Selection and Independence

Each Monitor is constituted through a process that structurally excludes the body being watched from selecting its watchers. The SC nominates the LM Monitor General, confirmed by national popular vote. The Assembly Speaker and Senate Speaker jointly nominate the EM Monitor General, confirmed by national popular vote with JM audit findings on the nominee's disclosure record published to the NRS before the vote. The JM Monitor General is selected by public lottery from a pool of former judges audited by the LM and EM.

§9.3 Monitor General Selection

All Monitor General confirmations follow the same process: the nominated or lottery-selected candidate is confirmed by national popular vote at the next federal electoral period by simple majority; timing is defined by statute to ensure seamless succession; if the confirmation vote fails, the §9.1.d acting mechanism activates and a new selection must begin within 60 days. The Elections Panel administers all confirmation votes. The LM Monitor General is nominated by the SC from the pool maintained by the Elections Panel and audited jointly by the EM and JM. The EM Monitor General is nominated jointly by the Assembly Speaker and Senate Speaker from the pool maintained by the Elections Panel and audited jointly by the LM and JM, with JM audit findings on the nominee's disclosure record published to the NRS before the vote; where the Speakers fail to jointly nominate within 60 days of a vacancy, the Senate selects from the pool by 2/3 vote. The JM Monitor General is selected by public lottery under §9.8 from the JM Candidate Pool under §9.4. A Monitor General confirmed following an unscheduled vacancy serves only the remainder of the original term. No two Monitor General full terms may be scheduled to begin within 18 months of each other; service for the remainder of a predecessor's term does not commence a new term for the purposes of this spacing requirement. The confirmed successor assumes full authority at the precise moment the incumbent's term concludes. Any person confirmed by the public to serve a full term as a Monitor General is not subsequently eligible to enter any Monitor General pool. A person confirmed by national popular vote to serve the remainder of a predecessor's term following an unscheduled vacancy under this section may not subsequently enter the Monitor General pool for that same capacity, but remains eligible for the pools of the other two capacities if otherwise qualified. Acting service under §9.1.d does not constitute confirmation for purposes of this provision.

§9.4 Judicial Monitor Audit Mandate

- (1) The JM monitors the court system, audits the Elections Panel's administration of the Judicial Pool, and conducts compliance audits across compact obligations. Its audit mandate is information-only.
- (2) Annual audit responsibilities include court operations for scope compliance and independence; the Elections Panel for electoral integrity; SC independence; inferior court compliance with jurisdictional limits; and compliance under Article XIV, Article XIX, Article XVI treaty obligations, and Article XX compacts.
- (3) The Elections Panel maintains the JM Candidate Pool. Eligibility is limited to former Republic judges — persons who have completed judicial service on a court of record at the trial court level or above, whether in a State court or the Republic's federal court structure — who have been out of active judicial office for at least one year. Former SC justices must have been out of SC service for at least five years.
- (4) The JM holds no role in constituting or certifying its own candidate pool. The Elections Panel applies the eligibility criteria and enters qualifying applicants into the pool.
- (5) The LM's ongoing audit encompasses verification of judicial service records; the EM's ongoing audit encompasses financial disclosure review; both publish findings to the NRS.
- (6) The JMC conducts the JM Candidate Pool lottery in a public session; the outgoing JM Monitor General does not participate. The pool is publicly accessible at all times.

§9.4.a Judicial Pool — Eligibility Criteria

The Elections Panel maintains the standing Judicial Pool from which all federal judicial appointments are drawn. Any citizen meeting the following eligibility criteria may apply directly to the Elections Panel: at least 15 years of legal practice or 10 years of judicial service; no current government position; no disqualifying financial interest as defined in §7.10. The Elections Panel applies the stated eligibility criteria and enters qualifying applicants into the Judicial Pool. The JM's ongoing audit of the Elections Panel encompasses the administration of the Judicial Pool; audit findings on the registry and its members are published to the NRS as part of that audit. The EM's ongoing audit of constitutional appointments encompasses financial disclosure review; findings are published to the NRS. Any applicant excluded from or removed from the registry may appeal to the SC within 14 days on the sole ground that the eligibility criteria were misapplied. The Judicial Pool is publicly accessible on the NRS at all times. A person who has served as a Supreme Court justice may not subsequently re-enter the Judicial Pool or be nominated to any federal judicial appointment. A person who has served in any other federal judicial appointment may not be nominated again to the same court, but remains eligible for nomination to a different federal court. Temporary or acting judicial service does not constitute service for purposes of this provision.

§9.5 Monitor Operations

Every finding, report, and discrepancy notice must be published to the NRS permanently and free of charge; no official may suppress, delay, classify, or alter a Monitor report before publication. Monitor reports are permanently exempt from classification. Any staff member may publish a minority report directly to the NRS if they believe a finding has been improperly omitted or suppressed — staff cannot be disciplined for doing so. All three Monitors jointly publish an annual State of the Republic report on a fixed date regardless of whether any political actor requests it. Where a compliance question spans multiple Monitor mandates, the Monitors may conduct a joint investigation; neither Monitor General may veto the other's contribution. All three Monitors have unrestricted access to records, personnel, facilities, and systems within their audit mandate; obstruction is recorded as a Fail under §9.5.a and reported to the responsible body. Every finding, report, and assessment published under this Article is delivered on publication to the body or officer responsible for the subject matter, and to the Speaker of each legislative chamber. Delivery is a matter of record and imposes no obligation to act.

§9.5.a Compliance Standards and Findings

The JMC defines and publishes to the NRS the compliance standard for each category of audit — the criteria by which each aspect of a finding is determined Pass or Fail, evaluated separately rather than as a single whole-entity judgment. No Monitor may issue a Pass or Fail finding for a category of audit for which the JMC has not yet published a standard; the underlying audit function continues, but produces no Pass or Fail determination until a standard exists. The JMC may adopt a single standard or separate standards tailored to distinct categories of audit. For each standard, the JMC publishes both the criteria and the methodology by which the criteria were developed. Where more than one standard exists, every published finding identifies which standard was applied. Each Fail is reported to the body responsible for that aspect, which publishes its own account of the matter for the public record. A change to any standard takes effect only for findings arising after the change is published. This prospective-only protection applies equally to the adoption of a new category of standard for any audit subject with a finding already pending at the time of publication. Where the JMC cannot reach consensus, each Monitor General's proposed standard and methodology are published individually under §9.7's dissent procedure.

§9.5.b Agency Accountability

Every agency the Legislature establishes is bound both by whatever this constitution specifies for it and by whatever mandate the Legislature has assigned to it by statute. A Fail reported under §9.5.a does not substitute for the responsible body's own independent obligation to act on matters within its operational control.

§9.6 Monitor Minimum Funding Guarantee

The annual appropriation for each Monitor, the Elections Panel, and the NRS Panel may not fall below the inflation-adjusted equivalent of the prior fiscal year's funding level without a 2/3 vote of both chambers in a concurrent vote. The Monetary Authority certifies each body's prior-year funding level adjusted for inflation and publishes the certified floor to the NRS before the Legislature begins its annual budget process. Where a budget reduces any protected body below its certified inflation-adjusted floor without the required supermajority, the prior-year funding level takes effect automatically for that body by constitutional operation.

§9.7 Joint Monitor Council

- (1) The three Monitor Generals jointly constitute the JMC as the standing coordination body for matters crossing Monitor jurisdictions.
- (2) The JMC houses joint constitutional functions expressly assigned to it by this Constitution, including the constitutional-pool lotteries assigned under §9.8. A function expressly assigned elsewhere remains with the body to which it is assigned.
- (3) The chair of any joint session is the Monitor General whose domain covers the primary subject matter; where all domains are equally engaged, the chair rotates annually.
- (4) Two of the three Monitor Generals constitute a quorum for all JMC functions; no mandatory joint function may be permanently blocked by a single Monitor General's non-participation. Where a Monitor General does not participate in a joint function, their position — if stated — is published to the NRS alongside the joint determination.
- (5) Where the Monitor Generals cannot reach consensus on a joint matter, each publishes their individual assessment and the disagreement is noted in the permanent NRS record. Sustained non-participation by a single Monitor General is subject to the §9.7.a Institutional Compromise Protocol.
- (6) The JMC conducts an annual NRS audit covering both operational compliance — whether the NRS is functioning as constitutionally required, accessible, and free of single points of failure — and content integrity — whether all constitutionally required publications across all domains have been made and no records have been altered or deleted. The joint annual NRS audit is published to both chambers.

(7) The JMC has no authority to override the individual mandate of any Monitor. Where this Constitution assigns a function to the JMC, the JMC exercises that function collectively by majority vote of participating Monitor Generals and publishes its determinations to the NRS; a dissenting Monitor General's position is published alongside.

(8) The JMC may delegate operational responsibility for any assigned function to one or more individual Monitor Generals without transferring constitutional accountability for the function; it may also coordinate resource allocation across Monitor offices as needed to fulfill assigned functions, provided no Monitor's capacity to fulfill their individual mandate is diminished.

§9.7.a Institutional Compromise Protocol

Where two of the three Monitors jointly assess and report that the third is operating in demonstrable bad faith, they may petition the SC directly for confirmation under its original jurisdiction in §4.5. The SC shall rule within 14 days. If the SC confirms the finding, the affected Monitor General's authority is suspended by constitutional operation and the most senior eligible member of that Monitor's candidate pool by continuous pool tenure who accepts designation serves as Acting Monitor General. Both executives are notified immediately. The Acting Monitor General holds the affected Monitor's constitutional functions for the duration of the suspension. If the SC does not confirm the finding, no suspension occurs. If the SC does not rule within the required period, the petition lapses and may be refiled; no extension under §4.5(8) applies to this deadline. If confirmed, acting service continues until either the original Monitor General is restored to full function or a new permanent Monitor General is confirmed under §9.3, whichever occurs first. The Acting Monitor General is not eligible for permanent appointment to the position in which they serve; upon conclusion of acting service they return to the candidate pool.

§9.8 Constitutional Pool Framework

(1) The Elections Panel maintains all constitutional candidate registries and pools, including the Judicial Pool, and administers public access to their records via the NRS.

(2) Each pool is subject to ongoing Monitor audit; findings are published to the NRS.

(3) Lottery draws for constitutional candidate pools assigned by this Article are conducted by the JMC in a public session and published to the NRS. This subsection does not displace a lottery expressly assigned elsewhere by this Constitution.

(4) The constitutional minimum for all pools is five eligible members; where a pool falls below five, the JM publishes a compliance breach and the relevant nominating bodies must act to restore the minimum within the period defined by statute.

(5) Where a pool reaches zero before an acting designation is made, the most senior sitting State court judge by continuous service on a court of record who accepts the designation serves as Acting officer until the pool is restored; where two or more judges have equal continuous service, the oldest by age is designated first; a designee may not exercise State judicial functions while serving, and their State office is otherwise unaffected; this fallback applies only to judicial and Monitor pools.

(6) Eligibility criteria for all pools are strictly objective — years of practice or service, office status, and financial interests as defined under §7.10. No registry administrator may apply criteria relating to legal philosophy, judicial temperament, ideological orientation, or political association; any exclusion on such grounds is constitutionally void.

(7) Where an applicant is excluded or removed, the administering body must publish the specific grounds to the NRS within 14 days; the applicant may appeal to the SC within 14 days of that publication on the sole ground that the eligibility criteria were misapplied.

(8) Changes to eligibility criteria apply prospectively only and do not affect persons already entered in a constitutional pool or registry under the criteria applicable at the time of their entry.

§9.9 Constitutional Officer Removal — Standard Track

(1) This section governs for-cause removal of all constitutionally confirmed independent officers except Supreme Court justices under §4.3.a and elected executives. Removal of Monitor Generals proceeds under subsections (2) through (6); removal of all other officers within this section's scope proceeds under subsections (7) through (11).

(2) Removal of a Monitor General is initiated by the branch or branches that Monitor does not audit: for the Legislative Monitor General, jointly by both executives; for the Executive Monitor General, by the Supreme Court; for the Judicial Monitor General, jointly by the Legislature by concurrent resolution of both chambers and by both executives. The initiating authority files stated grounds to the NRS.

(3) Filing suspends the Monitor General's constitutional authority immediately, and the acting mechanism under §9.1.d activates from that moment and continues until the referendum result is certified. Suspension is not removal. Suspension does not affect the Monitor General's compensation, benefits, or the running of their term, all of which continue in full unless and until removal is certified.

(4) A national referendum on removal is administered no later than 90 days from filing, or at the next regularly scheduled federal election, whichever comes first. The Monitor General is removed if the referendum achieves 60% of votes cast under §7.3 with a minimum 55% citizen participation.

(5) Where the referendum fails, or where no referendum is administered within the period required by subsection (4), the suspension lapses automatically and the Monitor General resumes full authority by constitutional operation, with no further act required.

(6) Removal may not be reinitiated against the same Monitor General on the same or substantially similar grounds for the remainder of that Monitor General's term.

(7) For all other officers within this section's scope: a concurrent resolution of 1/3 of either chamber, or two of the three Monitors jointly, may initiate removal by filing stated grounds with the SC.

(8) The SC determines within 14 days whether the stated grounds constitute at least one statutory removal category for the subject office; the SC reviews constitutional category only, not factual merits.

(9) If grounds are confirmed, duty suspension activates immediately and removal requires a 2/3 concurrent vote of both chambers; no removal vote may be held within 180 days of a major national election without prior SC review within 48 hours. Suspension under this subsection does not affect the officer's compensation, benefits, or the running of their term, all of which continue in full unless and until removal takes effect.

(10) If grounds are not confirmed, the process closes and may not be reinitiated on the same or substantially similar grounds within six months.

(11) The SC must rule within 14 days; where the SC requires additional time, a majority of seated justices may file an extension request within the 14-day period specifying the reason and the additional period required, published to the NRS; the maximum extension period is defined by statute. Where the SC neither rules nor files an extension request within the applicable period, the removal proceeding lapses for that session and may be reinitiated under this section.

(12) The Legislature defines enumerated removal categories for each constitutionally confirmed office by statute.

§9.9.a Monitor General Disclosure

Monitor Generals disclose financial interests under the same substantive requirements and schedule established in §7.10, with disclosure published directly to the NRS; no Monitor reviews another Monitor General's disclosure. Recusal is governed by §7.11. The Legislature must include concealment of a disqualifying financial interest, or failure to recuse where required, among the statutory removal categories established for Monitor Generals under §9.9.

Article X — The National Record System

§10.1 National Record System

- (1) The National Record System is the permanent, tamper-evident public record of the Republic — freely accessible to every Inhabitant at no cost.
- (2) Every constitutional act, order, finding, certification, designation, declaration, and determination made under this Constitution is published to the NRS as a permanent record; no provision need state this obligation individually. Records created in the exercise of official functions are public records subject to this Article and may not be retained, destroyed, or removed by departing officers.
- (3) All electoral records — voter registration, ballot counts, audit trails, certification documents, constitutionally required campaign-finance records, electoral-administration records, direct-democracy records, and constitutional-amendment records — must be published to the NRS within the applicable constitutional or statutory timeframe. No classification exception applies to those records. Nothing in this subsection permits disclosure of an individual voter's ballot or information that would defeat ballot secrecy under §11.2.
- (4) Where this Constitution provides a specific publication timeline it governs. Otherwise a constitutionally required record is published as soon as possible after the act or event to which it relates. Publication does not condition legal effect unless this Constitution expressly makes publication a condition of effect.
- (5) Records may not be deleted, altered, or reclassified after publication; corrections are published as new entries alongside the original.
- (6) Where the NRS Panel determines by unanimous vote that a record poses an imminent, specific, and documented threat to individual safety, it may temporarily restrict access for up to 30 days pending judicial review; the reviewing court must rule within 14 days; the record is permanently restored unless the court confirms the restriction on the narrowest possible grounds; the applicable court is designated by statute. The original timestamp and the restriction record both remain as permanent NRS entries. Where the reviewing court declines to confirm a restriction, the same record may not be restricted again under this subsection on the same or substantially similar grounds.
- (7) Except where this Constitution expressly makes publication or another implementing act a condition of effect, governmental authority and legal effect arise by constitutional operation or issuance as provided in §7.15. The NRS records authority; it does not create it.
- (8) The JM maintains a continuously operating parallel authentication system, physically independent of the NRS, capable of preserving all constitutional acts with full constitutional effect from issuance; upon NRS restoration, parallel records migrate with their original timestamps. Where the NRS has not been restored within 180 days, the parallel system becomes the constitutional record; the Legislature must establish permanent restoration obligations by statute within 90 days of that threshold.
- (9) The Legislature defines technical standards for both systems by statute. Records published by any Republic jurisdiction are recognized as authentic without re-certification. Monitor reports are permanently exempt from classification. Classification used to conceal a constitutional violation or illegal order is a constitutional offense.

§10.2 Classification Criteria

Government records may be classified only on grounds the Legislature defines by statute. Classification to conceal a constitutional violation, policy disagreement, or political embarrassment is prohibited and void. The classifying authority must state the statutory ground at the time of classification. No record may remain classified beyond 25 years from the date of original classification. A single 5-year extension may be granted where the responsible executive publishes a justification to the EM; the EM assesses whether the justification meets the statutory standard and publishes its finding to the NRS. No material may remain classified beyond 30 years under any circumstances. On expiry, the NRS Panel publishes the declassified record within 30 days of the classification ceiling date; this obligation is automatic and requires no further government act. All other classification periods, procedures, and review mechanisms are defined by statute within this ceiling. Any person with standing may petition the applicable court for release of a classified record in redacted form, at any time during the classification period. The court orders release of any portion whose disclosure would not itself satisfy the statutory ground under which the record was classified. Where a record is released in redacted form, the redactions and the statutory ground for each are published to the NRS with the released portion. Any person with standing may additionally petition for full declassification of a specific record during an extension period granted under this section; the court reviews whether the stated statutory ground continues to justify classification of that record, and orders declassification where it does not. Any EM finding published under this section is admissible in such a proceeding. The applicable court is designated by statute. Records that this Constitution requires for elections, electoral campaigns or finance, electoral administration, direct democracy, or constitutional amendments may not be classified. Ballot secrecy and information protected by §11.2 remain protected.

Article XI — NRS Panel and Elections Panel

§11.1 NRS Panel and Elections Panel

- (1) Two constitutionally independent panels — the NRS Panel and the Elections Panel — operate the Republic's permanent record infrastructure and electoral systems respectively.
- (2) The NRS Panel operates the National Record System.
- (3) The Elections Panel establishes and maintains the National Voting System, sets administrative and technical standards for federal elections, certifies election equipment for state procurement, audits state compliance with federal election standards, administers referenda and confirmation votes, and certifies all federal election results.
- (4) Where the Elections Panel certifies a State's election system as non-compliant before an election, the Panel may withhold result certification for affected districts pending compliance or a special election under §7.2.a. This authority is exercised only through the process established in §11.3, including its notice, cure period, and challenge provisions. Withholding certification does not affect the validity of votes cast.
- (5) Each panel is operationally independent of the other, of both executives, and of the Legislature in the exercise of its functions.
- (6) The Legislature defines qualification standards, panel composition, term lengths, and operational parameters for each panel by statute; panel members are appointed through the independent agency process under §3.9. Each panel must have no fewer than five members at all times; the Legislature may not reduce either panel below this floor. No single appointing authority may hold a majority of appointments to either panel within any single electoral term.
- (7) The Chair of each panel is its most senior member by continuous service; where two or more members have equal continuous service, the Chair is determined by lot conducted by the JMC.
- (8) Each panel exercises only those ministerial functions expressly granted by this Constitution and by statute. The Legislature must establish by statute a procedure for each panel to adopt temporary technical measures in response to imminent security threats or system failures within its domain; such measures may not change electoral rules, timelines, or NRS record permanence, and expire within 72 hours unless ratified by a majority of the panel's seated members.
- (9) Where either Panel falls below the five-member floor through resignation, removal, disqualification, or any other cause, the remaining members may by majority vote designate a qualified civil servant employed by that Panel as an Acting member, not to exceed the period defined by statute, which may not exceed 180 days. Where the remaining members are unable to designate, the Civic Consul designates. Acting members designated by the Civic Consul may not at any time constitute a majority of the Panel's seated membership. An Acting member exercises all authorities of a full member during the designation, and the designation does not affect the ordinary process for filling the vacancy permanently.

§11.2 NVS Properties and Voting Rights

The National Voting System must maintain three constitutionally required properties simultaneously: ballot secrecy (technically impossible to link any vote to any voter, including in post-election audits), public auditability (aggregate results mathematically verifiable by anyone with NRS access; every vote individually verifiable by the voter without revealing identity to any other party), and resilience (capable of operating in degraded conditions without compromising either secrecy or auditability). No information generated by the NVS — including voter participation records — may be shared with any government body or foreign entity for any purpose other than administering the relevant election. The Elections Panel issues and manages the Citizen Voting Credential, storing only cryptographic identifiers — not names or biometric data. Voter eligibility is verified through cryptographic matching against citizenship and residency records maintained separately from the NVS and accessible only for that purpose. No State may impose requirements or intermediaries that effectively reduce NVS access or impose burdens not present in direct NVS participation. Before each federal election window, the Elections Panel delivers to every eligible citizen the list of federal races on their ballot, NVS access procedures, and the certification timeline through at least two distinct channels.

§11.3 State Election Non-Compliance

Where the Elections Panel finds through audit that a State's election administration materially fails to meet the constitutional standards required under §11.1, it publishes the finding to the NRS and notifies the State formally. The State has the period defined by statute to cure the identified failures. Where the State does not cure within that period, the Elections Panel administers the relevant federal election directly within that State for that electoral period only; State administration resumes automatically at the conclusion of that period. The State may challenge the Elections Panel's finding under §4.5's original jurisdiction provisions governing State-federal disputes; the process and timeline are defined by statute. A finding of non-compliance does not affect the validity of votes cast; the Elections Panel's administration obligation is to ensure constitutional standards are met going forward.

Article XII — Social State and Economic Rights

§12.1 The Social State and Monetary Authority

The Republic is a social state. Every Inhabitant is entitled to conditions of life consistent with human dignity, which the Republic fulfills through three mandatory systems: universally accessible healthcare insurance; social assistance sufficient to maintain basic material conditions; and free compulsory education for every child. The Legislature establishes the framework for each by statute.

§12.1.a The Monetary Authority

The Monetary Authority is a constitutionally mandated institution independent of both executives and the Legislature in the exercise of its constitutional functions. It is responsible for monetary policy, currency issuance, fiscal integrity certification, and the National Endowment functions assigned by this Article. The MA has exclusive authority to issue the Republic's currency; no State, Territory, or other body may issue instruments intended to function as legal tender within the Republic. Internal organization, the number and titles of offices, staffing, administrative procedures, and operational structure are defined by statute consistent with this independence. Principal decision-makers exercising the MA's constitutional authority must be selected through an independent candidate process and confirmed by 2/3 of the Senate. No single officer or institution may appoint or remove a majority of the MA's principal decision-makers. Their terms must be staggered so that ordinary electoral turnover cannot replace the entire leadership at once. They may be removed only for cause relating to conduct, incapacity, or competence; disagreement over monetary policy, economic judgment, or a lawful certification is not cause. A vacancy does not suspend or transfer the MA's constitutional functions. The EM audits MA operations and independence annually and publishes findings to the NRS. Statute may regulate the MA's administration but may not compromise the independence or credibility of its constitutional functions.

§12.1.b Monetary Authority Reporting

The Monetary Authority publishes a State of the Economy report to the Assembly, the Legat Consul, and the Civic Consul no less than semi-annually; the Legislature may by statute require a more frequent cycle. Each report includes the Monetary Authority's account of relevant findings from the preceding period under §9.1.b and any applicable §9.5.a compliance findings. The Monetary Authority may publish additional reports at any time circumstances warrant, addressed to the same recipients. Where a Monitor publishes a Fail the publishing Monitor identifies as relevant to the Monetary Authority's mandate, the Monetary Authority must, within 30 days, submit a report addressing the finding to the Assembly, the Legat Consul, and the Civic Consul, published to the NRS. Submission of that report discharges the Monetary Authority's obligation under this provision; further action is a matter for the Legislature.

§12.2 Fiscal Accountability

- (1) The annual budget originates in the Assembly. Each Consul prepares and submits to the Assembly a proposed budget for their respective domain, published to the NRS upon submission, by the deadline defined by statute; absent a statutory deadline, no later than 120 days before the start of the fiscal year.
- (2) The Assembly gives the Consuls' proposals due consideration in preparing the annual budget and is not bound by them.
- (3) A Consul's failure to submit a domain proposal does not delay or bar the budget process; the failure is published to the NRS and the Assembly proceeds.
- (4) The Legislature must pass a balanced budget or publish a structural deficit justification reviewed by the MA for fiscal accuracy.
- (5) Structural deficits above the threshold defined by the MA require a published plan for return to balance.

(6) Where the Legislature fails to enact a budget by the constitutional deadline defined by statute, an interim automatic appropriation takes effect by constitutional operation covering:

- judicial operations, active defense authorizations under §14.2, and social state continuity under §12.1;
- civil service compensation;
- and debt service obligations.

(7) The interim appropriation continues at the prior fiscal year's inflation-adjusted level until a budget is enacted; no new programs may be initiated or expanded under the interim appropriation.

(8) Where discretionary government spending is suspended due to budget failure, the pay of all members of both chambers is withheld from the same date on which government employee pay is withheld and released only upon budget enactment.

(9) The Legislature must fund the National Endowment by appropriation in years of fiscal surplus. The EM assesses compliance with this requirement annually and publishes its assessment to the NRS.

§12.3 Taxing Power and National Revenue Fund

The Legislature has exclusive authority to levy taxes, duties, and tariffs by statute; no other federal body may impose a tax, duty, or levy of any kind. States, Territories, and local governments retain authority to tax within their own jurisdictions, subject to §12.5 and the non-discrimination requirements of §1.6. All public money received by the Republic — including tax revenue, fees, and other receipts — is deposited into the National Revenue Fund. No money may be withdrawn from the National Revenue Fund except by legislative appropriation. The EM audits the Fund's receipts and disbursements as part of its annual fiscal mandate and publishes findings to the NRS. No tax may discriminate on the basis of the characteristics listed in §1.6. Tariff rates established by a ratified treaty or approved trade agreement under §3.6 constitute legislatively authorized rates for the duration of that instrument; the Legislature may set tariff schedules within which the Legat Consul may negotiate specific rates.

§12.4 National Endowment

The National Endowment is a constitutionally established reserve fund that backstops the Republic's social state obligations under §12.1 during periods of Severe Revenue Contraction, as certified by the Monetary Authority. The Endowment operates independently of the annual budget process and is managed by the Monetary Authority as part of its constitutional mandate; the Monetary Authority's sole obligation with respect to the Endowment is to preserve and grow it for social state backstop purposes. Disbursements are activated on Monetary Authority certification of Severe Revenue Contraction and continue until the Monetary Authority certifies the contraction has ended. The EM audits the Monetary Authority's management of the Endowment annually and publishes findings to the NRS. Where a certified Severe Revenue Contraction continues beyond 12 months, continued Endowment disbursement requires authorization by statute, enacted through the ordinary legislative process and renewed at intervals not to exceed 12 months for the duration of the contraction. Where authorization is not renewed, disbursements cease and any adequacy-standard reduction under §1.16 or §1.17 lapses with them. The Monetary Authority's certification of the contraction's end terminates disbursements and any such reduction regardless of authorization status.

§12.5 Internal Commerce

No State or Territory may impose requirements on goods, services, or economic activity originating in another State or Territory that are more burdensome than those applied to its own. The Legislature may establish uniform internal commerce standards by statute.

§12.6 Fiscal Equalization

The Legislature shall by statute establish a mechanism ensuring that every State and Territory has fiscal capacity reasonably sufficient to fulfill the Social State obligations under §12.1 and the rights guaranteed under Article I. The mechanism is reviewed at intervals the Legislature defines by statute. The EM certifies whether the mechanism is operating as required and publishes its finding to the NRS annually. Where the EM finds the mechanism has failed, the Legislature publishes its response to the NRS within 90 days.

Article XIII — Direct Democracy

§13.1 Optional Referendum

- (1) Citizens may initiate a national referendum to repeal enacted legislation. The petition process begins within 90 days of enactment and proceeds in two phases, each authenticated through the NVS using Citizen Voting Credentials.
- (2) Phase One, lasting up to 8 months, requires signatures from citizens equal to a percentage of eligible voters — defined by statute at not less than 0.5% nor more than 3% — in each of at least one-third of all States and Territories.
- (3) Phase Two, lasting up to 8 months following Phase One's completion, requires signatures from 5% of eligible voters nationally; signatures gathered in Phase One carry over and count toward this threshold.
- (4) Laws that solely or primarily expand an Article I right, budget laws, and laws implementing a constitutionally mandated obligation are ineligible.
- (5) The Elections Panel applies these ineligibility categories when administering petitions; the LM's ongoing audit of legislative compliance encompasses published findings on the character of enacted laws, which the Elections Panel and any party may reference. Any eligibility determination is challengeable in the Appellate Court within 14 days.
- (6) If the threshold is met, the Elections Panel administers the referendum within 90 days of verification. A simple majority of votes cast, subject to a turnout threshold defined by the Legislature of not less than 30% and not to exceed 50%, repeals the law immediately upon certification.
- (7) A failed referendum may not be re-initiated on the same or substantially similar grounds within three years; the Legislature may re-enact a repealed law, which is again subject to referendum. No statute, rule, fee, deadline, or administrative practice may make the constitutional process established by this section nominally available but functionally prohibitive.

§13.2 Citizen Legislative Initiative

- (1) Citizens may propose legislation directly to the Legislature. The petition process proceeds in two phases, each authenticated through the NVS using Citizen Voting Credentials.
- (2) Phase One, lasting up to 10 months, requires signatures from citizens equal to a percentage of eligible voters — defined by statute at not less than 0.5% nor more than 3% — in each of at least one-third of all States and Territories.
- (3) Phase Two, lasting up to 10 months following Phase One's completion, requires signatures from 10% of eligible voters nationally; signatures gathered in Phase One carry over and count toward this threshold.
- (4) Once the threshold is met, the Legislature must vote on the proposal within 90 days; if it fails or is not voted on, the proposal proceeds to a direct citizen referendum; passage requires 60% of votes cast with at least 50% citizen participation.
- (5) Where an initiative enacted under this section is alleged to conflict with this Constitution, the SC resolves the dispute under its original jurisdiction in §4.5 on petition of any person with standing. The SC may not refuse to apply an initiative that has met the procedural thresholds of this section, except that no initiative may narrow a right under Article I, appropriate funds or alter revenue, or extinguish a right designated non-derogable under §1.19.a; an initiative purporting to do so is void to the extent of the conflict.
- (6) A failed initiative may not be re-initiated on the same or substantially similar grounds within three years. No statute, rule, fee, deadline, or administrative practice may make the constitutional process established by this section nominally available but functionally prohibitive.

Article XIV — Military Authorization and Accountability

§14.1 Authorized Purposes for Military Force

Military force serves two authorized purposes: protection of the Republic's territory, citizens, and treaty allies; and, with legislative authorization stating the specific grounds, response to crimes against humanity as defined under international law. The Legislature applies that definition directly in each authorization; no prior international recognition or finding is required. Three purposes are explicitly prohibited regardless of legislative authorization: the installation, support, or maintenance of a specific governmental structure in another sovereign state; resource extraction; and ideological imposition. Legislative authorization must state which authorized purpose it serves; authorization that cannot be linked to an authorized purpose is constitutionally void. The SC's review under this section is limited to whether the Legislature linked the authorization to one of the purposes enumerated above; the SC does not review whether the underlying facts satisfy that purpose's legal threshold.

§14.2 Defense Authorization and Allocation

Military expenditure requires legislative authorization under §14.1 and budget passage under §12.2; the Legat Consul executes that funding. Where authorization specifies categories or amounts, the Legat Consul is bound by them; otherwise, the Legat Consul determines allocation within the authorized total. The Legat Consul answers public questions before the Senate at intervals defined by statute and provides classified briefings to the Senate during active operations. Neither obligation constitutes Senate approval or conditions the Legat Consul's authority to act. The Legat Consul keeps the Civic Consul informed of expenditure and its budgetary implications through the Council of Ministers under §2.14. When legislative authorization expires or lapses, all expenditure ceases; contracts may wind down for up to 90 days, with no new commitments permitted after expiration. The EM audits expenditure during active operations and publishes findings to the NRS, including intelligence activities conducted in support of those operations, published in classified summary form. The EM publishes a comprehensive accountability report within 180 days of an operation's conclusion.

§14.3 Military Accountability

Within the period defined by statute following legislative military authorization being renewed for a second time, the Legat Consul submits a Transition and Reconstruction Plan to the Senate specifying the Republic's post-conflict obligations: status of alliance obligations, civilian reconstruction support, transitional justice support, and withdrawal timeline. The Senate reviews and approves the Plan, and may amend it in consultation and coordination with the Legat Consul. The approved Plan is published to the NRS and is binding on both executives within their respective domains. Legislative authorization may not be renewed beyond that point unless the Senate has approved a Plan; where authorization is not renewed, expenditure ceases under §14.2.

§14.4 Treaty-Based Military Authorization

Where an existing treaty requires military action, the Legat Consul may act immediately and must notify both chambers and the Civic Consul within 12 hours, citing the specific treaty obligation triggered. Senate ratification of a treaty by the required supermajority constitutes legislative authorization for all military actions required by that treaty when its obligations are triggered; no separate legislative authorization is required for operations the treaty obligates. The Legislature's authority over treaty-based operations runs through appropriations and through the treaty withdrawal mechanism under §3.6. The oversight and accountability provisions of §14.2 apply from the moment of action. Where the SC determines that a treaty's trigger conditions were not met, military operations are limited to a defensive posture, and both chambers of the Legislature must vote on whether to authorize continuation of the action no later than 30 days after the SC's decision is published. An affirmative vote in both chambers constitutes legislative authorization, and the action proceeds under the ordinary terms of this Article from that point. Absent an affirmative vote within the 30-day period, §14.2's expiration and wind-down provisions apply. Treaty-based authorization extends only to military action the treaty specifically requires. Where an operation conducted under this section extends beyond the action the treaty obligates, the extended action requires legislative authorization under §14.1 and is subject to §14.3 on the same terms as any other authorized operation. Whether particular action falls within a treaty's obligation is determinable by the SC on petition of any party with standing.

§14.5 State Forces

A State may maintain organized forces for disaster response, civil emergency, and the preservation of public order within the State. Such forces are subject to Article I and to the prohibitions of §14.1 in all circumstances.

State forces may be called into federal service only under legislative authorization satisfying §14.1, and only for defense of the Republic against invasion or armed attack or to suppress insurrection against the constitutional order. They may not be employed outside the Republic's territory. While in federal service they are subordinate to federal command and no State may withhold them; otherwise they remain under the authority of the State.

The Civic Consul may request the assistance of a State's forces within that State, with the consent of the State authority designated by its own constitution. Assistance so rendered is coordination, not command, and the State may withdraw its consent at any time.

No State force may be employed against the constitutional order of the Republic, against another State, or to obstruct a federal constitutional function. Composition, training, equipment standards, and the terms of federal call-up are established by statute.

Article XV — Territorial Structure and Statehood

§15.1 Territorial Compact

A Territory operates under a Territorial Compact — the restructuring agreement under §15.4 or the incorporation agreement under §15.6 where the Territory results from one of those processes, or otherwise a standard statutory framework the Legislature defines, which must provide for an elected local governing authority over matters of local concern — has federal protections under Article I, accesses social state systems under §12.1, and may begin the Statehood pathway under §15.2. Territories hold Assembly seats proportional to their population and participate as full voting members. Territories do not hold Senate seats; Senate representation is reserved for States.

§15.1.a Provisional Status

Provisional status is a remedial constitutional status applicable only to an existing State under the remediation and devolution provisions of this Article; it is not an intermediate stage between Territory and Statehood. A State in Provisional status remains a State. Its constitution, government, courts, administrative functions, Assembly representation, social-state access, and Article I protections continue without interruption. Sitting senators complete their current terms, but no new Senate term begins for the State while Provisional status continues. The State returns to ordinary State status upon publication of two consecutive annual Statehood Audits with no material failure finding by any Monitor. Further transition support, fiscal coordination, and administrative assistance during Provisional status are defined by statute.

§15.2 The Statehood Audit

(1) A Territory's elected governing authority under §15.1 may by resolution request a Statehood Audit for the whole Territory. Alternatively, a citizen petition — signed by a percentage of eligible voters within the Territory defined by statute at not less than 5% nor more than 15%, authenticated through the NVS using Citizen Voting Credentials, and certified by the Elections Panel — achieves the same effect. A defined geographic subdivision of a Territory may petition for Statehood independently of the remainder under the same criteria, using the citizen petition mechanism scoped to eligible voters within the subdivision.

(2) Each Monitor conducts the portion of the Statehood Audit within that Monitor's constitutional domain and publishes an individual finding. The audit examines: free, lawful, and competitive elections; functioning constitutional government capable of State responsibilities; effective rule of law and lawful administration; substantial compliance with Article I; and other objective constitutional-capacity criteria established by statute. An overall failed audit requires at least two of the three Monitors to find a material failure within their respective domains. A single material-failure finding is published as a warning requiring remediation but does not constitute overall audit failure. All findings and dissents are published to the NRS.

(3) A Territory that passes the Statehood Audit becomes a State immediately by constitutional operation. No additional political vote, legislative act, executive confirmation, or Provisional stage is required. The Statehood change is recorded to the NRS as soon as possible.

(4) Statehood immediately creates two Senate seats. The Elections Panel assigns the two seats by public lot to two distinct existing Senate classes and administers a special election within 90 days. The first senators serve only the remainder of the assigned class terms; the classes and terms of existing States are unaffected.

(5) Every State is subject to an annual Statehood Audit under the same Monitor structure and criteria. Judicial review is available for legality, process, jurisdiction, and application of the stated criteria; a court may not substitute its policy judgment for a Monitor's domain assessment.

(6) Where active conflict prevents completion of an annual audit in a significant portion of a State's territory, the Monitors may publish a provisional audit-status finding for that cycle. A provisional audit status is unavailable where the State materially contributed to the conflict conditions.

§15.3 Mandatory Devolution

- (1) An existing State enters the mandatory remediation track upon an overall failed annual Statehood Audit under §15.2.
- (2) A first consecutive failed audit produces an Early Warning and requires the State to publish a Remediation Plan within the period defined by statute. A second consecutive failed audit produces a renewed Early Warning and requires a revised Remediation Plan. A passing audit before a third consecutive failure breaks the sequence.
- (3) A third consecutive failed audit places the State in Provisional status automatically by constitutional operation. The State remains a State as provided in §15.1.a.
- (4) A Provisional Audit Council activates upon entry into Provisional status. The Council comprises two officers appointed by the Civic Consul through the standard executive officer appointment process and two delegates appointed by the State legislature. It reviews audit findings, proposes remediation plans, and publishes recommendations; it is advisory only and the State legislature retains legislative authority. The Council dissolves when Provisional status ends.
- (5) When the first sitting senator's term expires after the State enters Provisional status, the Elections Panel administers a citizen referendum on whether to pursue devolution under §15.4. If the referendum does not approve devolution and the State remains in Provisional status, the Elections Panel administers another referendum at two-year intervals thereafter.
- (6) An affirmative referendum proceeds through the negotiation and ratification process of §15.4. Absent an affirmative referendum, the State remains in Provisional status and continues remediation.
- (7) A State may obtain judicial review of the audit sequence and entry into Provisional status on grounds of legality, process, jurisdiction, or application of the stated criteria. Review does not authorize policy substitution for Monitor findings.

§15.4 Voluntary Devolution and Merger

A State may voluntarily restructure its relationship with the Republic through devolution. Whether entered voluntarily under this section or following the mandatory-remediation route under §15.3, the process after entry is the same: first, a State referendum must achieve 60% of votes cast with participation by at least 50% of eligible voters on the principle of pursuing devolution; second, upon approval, the State and the Legislature negotiate a restructuring agreement; and third, the Senate ratifies the agreement by 2/3 of full seated membership. The agreement specifies asset and liability allocation, transition timeline, constitutional status of successor jurisdictions, fiscal obligations to the Republic, and continuing obligations; it is published to the NRS and legally binding. A State that initiates devolution voluntarily retains full State status, including Senate representation, unless and until the restructuring agreement takes effect. A State already in Provisional status remains in that status throughout negotiation. Any State completing devolution becomes a Territory before any further constitutional-status change. Social-state protections and Article I rights continue through the transition. A Territory or defined portion of a Territory may merge with a geographically contiguous existing State, requiring a 60% referendum with at least 50% participation, approval by the existing State through its own constitutional process, a joint LM-JM assessment confirming the existing State's constitutional integrity is maintained, and Senate ratification by simple majority. A referendum for a defined portion of a Territory is triggered by a petition signed by citizens equal to a percentage of eligible voters within the defined portion — defined by statute at not less than 5% nor more than 15% — authenticated through the NVS using Citizen Voting Credentials and certified by the Elections Panel. The petition period may not exceed 12 months. Following certification of any referendum under this section, any party with standing has 30 days to file a legal challenge to the process or result. Where no challenge is filed, or upon resolution of a challenge that is filed, the window closes and the next step proceeds; a certified result may not be challenged on the same grounds once the window closes.

§15.5 Re-Qualification Pathway

A Territory resulting from mandatory or voluntary devolution enters the §15.2 pathway immediately upon the effective date of devolution — no additional political vote is required. Where a defined geographic subdivision of the Territory separately achieves Statehood under §15.2 or merges with an existing State under §15.4, the remainder continues as Territory without interruption.

§15.5.a Remainder Viability

(1) Where two or more petitions under §15.4 or §15.2 affecting different defined portions of the same Territory are certified within 90 days of one another, subsections (2) and (3) do not apply to any of them; all such petitions are addressed together under subsection (4).

(2) Where subsection (1) does not apply: before any referendum is held under §15.4, or before a defined geographic subdivision of a Territory may petition for Statehood under §15.2, the JMC must, within 90 days of petition certification, assess whether the Territory's remaining portion could realistically satisfy the conditions of the §15.2 Statehood Audit on its own administrative and economic resources, and publish its assessment to the NRS before the referendum or petition proceeds. The JMC may extend this period once, by up to 30 additional days, upon publishing to the NRS a justification for the extension and a specified date by which the assessment will be completed. Where the JMC does not publish its assessment within the period established by this subsection, including any extension, each member of the JMC has 7 days to cast an individual vote on whether the remaining portion could realistically satisfy those conditions, publishing the result to the NRS. The outcome is decided by a majority of votes actually cast; a member who does not cast a vote within that period is treated as abstaining. Where the vote does not produce a majority determination that the remaining portion could realistically satisfy those conditions — including where all three members abstain — the remaining portion is treated as not satisfying them.

(3) Where the JMC finds the remaining portion could realistically satisfy those conditions, the underlying referendum or Statehood certification proceeds without further condition under this section.

(4) Where subsection (1) applies, or where the JMC under subsection (2) finds the remaining portion could not realistically satisfy those conditions, the underlying referendum(s) or Statehood certification(s) do not proceed. The Civic Consul convenes a Territory Convention, composed of the Assembly members representing districts within the Territory, to determine a proposed resolution addressing all affected portions together. The Convention has 90 days from its first session to produce a proposed resolution. Where no resolution is produced within that period, all petitions addressed under this subsection lapse together and the Territory continues undivided. None of the lapsed petitions may be reinitiated under substantially the same geographic scope for three years. This Constitution does not prescribe the Convention's terms. Any resolution the Convention produces must be ratified by referendum of the eligible voters it affects, and proceeds under the applicable process of §15.2 or §15.4, including any approval, audit, or ratification steps those sections otherwise require.

§15.6 Voluntary Incorporation

A sovereign entity may petition to join the Republic's constitutional framework as a Territory. The process requires a petition resolution adopted by the entity's own legislature by 2/3 majority, confirmed by a citizen referendum achieving simple majority on at least 50% participation. Upon confirmation, the entity and the Legislature negotiate an incorporation agreement specifying a transition period not exceeding 48 months; the Legislature ratifies the agreement by 2/3 of both chambers. Under §9.1, either chamber may request a JM assessment of the entity's compliance with §1.19.a before that ratification vote; published JM findings must be given due consideration. Any person with standing may challenge the incorporation before the SC on the ground that the entity systematically violates §1.19.a. No constitutional officer may condition treaty obligations, trade relations, military cooperation, or foreign aid on any entity's decision to initiate or advance this process. During the Transition Window, a recognized indigenous nation proceeds under §16.2; thereafter, a recognized indigenous nation holding Associated Community status petitions under this provision as a sovereign entity.

§15.7 State Immutability and Territorial Integrity

A State's constitutional boundaries are fixed. No constitutional mechanism permits a State to divide directly into two or more States — the separating portion must first become a Territory before seeking independent Statehood. The Republic's territorial extent may only be reduced by the consent of the affected population through a parliamentary amendment with Popular Ratification, or through a citizen initiative amendment — parliamentary amendment with State Ratification alone is insufficient. A State may not secede by ordinary statute or State referendum alone. No executive action may alter the Republic's territorial extent. A founding status election under §16.2 constitutes the consent mechanism required by this section for indigenous territorial transitions effected during the Transition Window; no additional Popular Ratification is required. Recognition under §16.4 effects no territorial change; post-founding indigenous territorial transitions proceed under Article XVII. A completed process under §15.9, including its national referendum, constitutes the consent mechanism required by this section; no additional amendment or Popular Ratification is required.

§15.8 Local Government

Local governments — cities, counties, municipalities, and other subdivisions — receive constitutional recognition as primary points of contact between citizens and government. They are entitled to reasonable fiscal capacity to carry out their constitutional functions. States may not systematically defund local governments to achieve de facto centralization of State-level functions.

§15.9 Voluntary State Independence

- (1) A State may seek independence from the Republic through a three-stage process.
- (2) Stage One requires the State legislature to resolve by 2/3 majority to submit the independence question to the State's eligible voters; the referendum must achieve 60% of votes cast with at least 60% participation among the State's eligible voters; a failed referendum may not be reinitiated on the same or substantially similar grounds for five years.
- (3) Upon certification of the referendum result, the Elections Panel publishes the independence petition to the NRS; the petition may not be withdrawn by the State while the process continues.
- (4) The Republic may not prefer, discourage, or offer inducements toward any independence petition or referendum; the Republic must provide factual information about the process upon request.
- (5) Stage Two requires both chambers to hold a concurrent ratification vote within 90 days of NRS publication; Assembly members elected from districts within the petitioning State and senators elected from the petitioning State are recused from this vote, and the required 60% majority and quorum for each chamber are calculated from the remaining seated members; if either chamber fails to achieve 60% or fails to vote within 90 days, the petition lapses and the State may reinitiate Stage One without restriction.

(6) Stage Three requires a national referendum administered by the Elections Panel within 180 days of the Stage Two vote, in which all eligible voters of the Republic — including those of the petitioning State — participate; independence is approved by 60% of votes cast under §7.3 with a minimum 50% citizen participation. Where the referendum fails, the petition lapses and the State may reinitiate Stage One without restriction.

(7) Upon certification of an affirmative Stage Three result, the State and the Legislature negotiate a separation agreement specifying asset and liability allocation, borders, transition timeline, fiscal obligations, and continuing obligations, ratified by the Senate by 2/3 of full seated membership and published to the NRS; independence takes effect on the date the agreement specifies.

§15.10 State Government Incapacity

Where a State's constitutional government has become incapable of exercising governmental authority and cannot be restored through its own constitutional continuity mechanisms, the Republic may temporarily administer only those functions necessary to preserve rights, essential services, and restoration of democratic State government. The State's constitutional identity and status remain unaffected. Temporary administration ends automatically when constitutional State government is restored. Procedures are established by statute.

Article XVI — Indigenous Sovereignty

§16.1 Acknowledgment of Prior Sovereignty and Recognition

Indigenous Nations hold sovereignty that precedes the Republic. This sovereignty is acknowledged, not granted — the Republic's constitutional framework does not create it and may not extinguish it. The Republic deals with recognized indigenous nations as sovereign nations. A recognized indigenous nation, wherever that term appears in this Constitution, means a nation that, as of Day Zero, held a treaty with, a compact with, or formal recognition from a predecessor government, or a nation recognized under §16.4. The joint Monitor panel under §19.3 compiles the founding register of recognized nations from the predecessor record and publishes it to the NRS before the close of Phase 1; compilation is ministerial and applies the predecessor record as it stands. A nation omitted from the founding register may appeal to the SC within the period defined by statute on the sole ground that the predecessor record was misapplied. Recognition confers no territorial rights of itself; no act of recognition alters the Article I rights, citizenship, property, or residency of any person.

§16.2 Founding Status Election

(1) At ratification, the Republic formally notifies every nation on the founding register of its rights under this section; notification is published to the NRS.

(2) From Day Zero until the close of the Transition Window under §19.2, each recognized nation may elect, through its own lawful democratic or traditional governance process for major governance decisions, either: (a) Associated Community — continuing as a fully sovereign political community in a consensual Compact relationship with the Republic under Article XX; or (b) Territorial Integration — entering the Republic as a Territory under §15.1, with the ordinary §15.2 Statehood pathway available. A Territorial Integration election constitutes the petition and confirmation otherwise required by §15.6, and the nation and Legislature proceed directly to negotiation of an incorporation agreement ratified by 2/3 of both chambers. A recognized nation that independently qualifies for a founding direct-State entry under Article XIX may use that transition mechanism while it remains available; this does not create a separate post-transition Statehood pathway.

(3) If a recognized nation makes no status election during the Transition Window, the Republic treats it as an Associated Community pending conclusion, confirmation, or replacement of a Compact under Article XX. That interim treatment preserves the sovereign-to-sovereign relationship; it does not alter the nation's sovereignty, imply surrender, or constitute consent to Compact terms the nation has not accepted. Predecessor treaties, compacts, and lawful agreements continue according to §§16.3 and 16.5 until superseded.

(4) The Republic may not prefer, discourage, or offer inducements toward either status and must provide factual information upon request.

(5) Article I applies within the territory of each recognized nation throughout the Transition Window unless the nation, through its own lawful governance process, positively rejects that application and publishes the decision to the NRS. Following the Transition Window, the rights position is governed by the status held — §20.3 for an Associated Community or the ordinary Constitution for a nation that elected Territorial Integration.

(6) While Article I applies under subsection (5), any resident who believes an Article I right has been violated may bring an Emergency Rights Writ directly to the SC under its original jurisdiction in §4.5; the SC must rule within 7 days and the extension and interim protective-order provisions of §4.5 apply.

(7) Indigenous nation membership and Republic citizenship are compatible and independent statuses; no status election diminishes Republic citizenship, consistent with §5.1.

(8) Election of Territorial Integration permanently ends the founding Associated Community or Compact status under this section. That former status may not be revived by reversing the election. If the community later becomes a sovereign independent nation, any future Associated Community relationship requires a new Compact under Article XX. A sovereign independent Indigenous nation may seek Territory status under §15.6 on the same basis as another sovereign entity.

§16.3 Treaty Supremacy and Continuity

All treaties entered into by predecessor governments with indigenous nations are binding obligations of the Republic, regardless of the nation's status under this Constitution. Treaty rights cannot be diminished by legislation — they must be honored, renegotiated with consent, or formally superseded by mutual agreement through negotiation between the Legat Consul and the nation, ratified by the Senate under §3.6. Where a treaty's administration depends on a predecessor-government institution or mechanism with no Republic equivalent, the treaty's substantive rights and obligations continue in full regardless; the Legat Consul and the nation must begin discussions to identify an analogous Republic institution or a negotiated substitute mechanism within the Republic's first year, and pending resolution, a ministerial counterpart designated by the Legat Consul and published to the NRS administers the treaty's institutional functions on an interim basis. The EM audits the Republic's compliance with its treaty obligations under this section annually and publishes findings to the NRS.

§16.4 Post-Founding Recognition

A people asserting sovereignty preceding the Republic may submit a claim of prior sovereignty to the JMC at any time after the close of the Transition Window; the claim is published to the NRS. The JMC investigates the claim against the predecessor record and the criteria of §16.1 and publishes its findings to the NRS. The investigation is information-only: the JMC's findings bind no constitutional actor and compel no governmental act. Claimants may present the published findings in a petition for recognition to the Legat Consul, or pursue any legal remedy available under Article I. Where a petition for recognition is submitted, the Legat Consul determines it within the period defined by statute, not to exceed 180 days, with written grounds published to the NRS whether recognition is granted or declined. Recognition under this section activates the Republic's obligations under §16.3, establishes the nation as a collective legal person capable of negotiating with the Republic and entering arrangements under statute and §18.4, and constitutes the factual predicate for any subsequent constitutional amendment under Article XVII concerning the nation's territorial or sovereign status. Recognition under this section confers no territorial rights and effects no change to the Republic's territorial extent; any such change proceeds only under Article XVII, consistent with §15.7. A declined petition may be resubmitted after 5 years or upon a material change in the available record.

§16.5 Transition of Existing Arrangements

Existing arrangements between a recognized nation and the predecessor government — governance, services, land use, borders, trade, and infrastructure — continue provisionally from Day Zero until replaced by an Article XX compact, an incorporation agreement under §16.2, or a treaty instrument under §16.3. For a nation holding Associated Community status, the Republic must open compact negotiations under Article XX within 90 days of the status taking effect and negotiate in good faith; either party may propose terms at any time. Citizenship arrangements follow §5.1 throughout. Either party may petition the SC to resolve specific disputes arising within the provisional framework; nothing in this section delays or conditions the obligations under §16.3.

Article XVII — Constitutional Amendments

§17.1 Amendment Paths

(1) This Constitution may be amended through the parliamentary path or through citizen initiative. No executive signature is required; no executive veto applies. Every member's vote on any amendment is published to the NRS.

(2) A parliamentary amendment requires 2/3 of the full seated membership of both chambers. The proposing body simultaneously specifies the ratification mechanism — either State Ratification (ratification by 2/3 of States within the period defined by statute) or Popular Ratification (a national popular referendum achieving 2/3 affirmative support with at least 55% citizen participation within 180 days).

(3) Citizen Initiative Amendment: A proposed constitutional amendment proceeds through the same two-phase petition process as §13.2, with Phase Two requiring signatures from 15% of eligible voters nationally rather than §13.2's 10%. Once the Phase Two threshold is met, the proposal proceeds directly to a national referendum, with no legislative or executive action required to place it on the ballot; the Elections Panel administers the referendum within 180 days of Phase Two threshold verification. Passage requires 70% of votes cast with a minimum 65% citizen participation; where the participation floor is not met the initiative fails and may not be resubmitted on the same or substantially similar grounds for five years. Citizen initiative amendments are subject to §17.3 consistency analysis by the JM, advisory only.

(4) Amendment of the following provisions requires Popular Ratification regardless of the amendment's origin: the Monitor selection mechanisms and independence protections (§9.2–§9.4), the Monitor information-only mandate and non-dependency principle (§9.1), the Monitor funding guarantee (§9.6), the NRS architecture and permanence requirements (§10.1), and the Elections Panel and NRS Panel independence (§11.1). These provisions may not be amended by State Ratification alone; a Citizen Initiative Amendment satisfies this requirement through its own referendum under this section without separately clearing the Popular Ratification threshold.

§17.2 No Executive Veto; Amendment Takes Effect

Neither the Legat Consul nor the Civic Consul has any role in the constitutional amendment process. No signature required. No veto available. An amendment takes effect immediately upon LM certification (State Ratification), Elections Panel certification (Popular Ratification), or Elections Panel certification (Citizen Initiative Amendment), and NRS publication — no implementation delay, no executive discretion over timing.

§17.3 Amendment Consistency and Supremacy

(1) An amendment that is logically inconsistent with an existing provision must either explicitly repeal the inconsistent provision or the inconsistency is treated as void.

(2) The JM publishes a consistency analysis of any proposed amendment within 30 days of passage by both chambers for a parliamentary amendment, or within 30 days of Elections Panel Phase Two threshold verification for a citizen initiative amendment — advisory, but a permanent public record of what the amendment changes. No ratification vote on a parliamentary amendment may be held before the JM's analysis is published or the 30-day period expires, whichever occurs first.

(3) If a ratified amendment's consistency with existing provisions is disputed, the SC resolves the dispute under its original jurisdiction in §4.5 on petition of any person with standing; the SC may not refuse to apply an amendment that has met its procedural thresholds, except that no constitutional amendment may extinguish a right designated non-derogable under §1.19.a; any amendment purporting to do so is void to the extent of the extinguishment, and the SC must so rule under its original jurisdiction in §4.5 on petition of any person with standing.

(4) Amendments take prospective effect from the date of ratification — they do not retroactively alter the constitutionality of acts that were constitutional when performed.

(5) Two amendments may be simultaneously in the ratification process; if both pass, both are law; where they conflict, the one ratified later prevails; where margins and timing are equal, the LM determines precedence from NRS records.

(6) A proposed amendment may be withdrawn at any point before ratification is certified.

§17.4 Supremacy of This Constitution

This Constitution is the supreme law of the Federated Republic. All legislative acts, executive orders, treaties, administrative decisions, and government actions must be consistent with this Constitution. Any provision inconsistent with this Constitution is void to the extent of the inconsistency.

Article XVIII — Federal Property and National Trust

§18.1 The Use Doctrine

Federal government holds no territorial sovereignty within any State or Territory. All federal property rights are functional use rights — operational control over a designated footprint for the duration of the stated function. Use rights do not constitute ownership, do not transfer sovereignty from the host State, and do not survive the termination of the function that justified them. Every use right must be registered on the NRS with precise geographic boundaries, authorized purpose, and termination conditions. There are no unregistered federal land claims; disputes over registration validity are resolved under §18.3.

§18.2 Seat of Government

The Republic holds no territorial sovereignty at its Seat of Government. The Seat is hosted by a State or Territory selected through a competitive process defined by statute; any State or Territory may submit a bid, and the selected host must satisfy minimum requirements published to the NRS in advance of the selection. A State or Territory whose bid is rejected may challenge the selection before the SC on the ground that the selected bid did not satisfy the published requirements. The hosting arrangement grants the federal government Operational Use Rights over the designated footprint under §18.1; the host State or Territory retains full sovereignty outside that footprint. Federal control within the footprint is exclusive — the host may not tax federal operations or apply its own law to federal functions within the footprint. Residents of the federal footprint retain full Article I rights. The host selection must be reconsidered through a new competitive process no less often than every 20 years; the Legislature may not suspend or indefinitely extend this requirement by statute. Absent a qualifying new selection, the existing arrangement continues.

§18.3 Operational Use Rights

When a federal function ends, the Operational Use Right terminates automatically; the federal government must publish notice of termination to the NRS within the period defined by statute, not to exceed 90 days. The land and all improvements revert to the host State automatically unless the federal government and host State negotiate a retention agreement within the statutory reversion window. Disputes over use right boundaries, termination, registration validity, or improvement valuation go to the SC on an expedited track; neither party may occupy or alter disputed land during pending resolution.

§18.4 The National Trust

The National Trust holds all federal land not conveyed by statute to States, recognized indigenous nations, or private parties. Land disposal requires statute — the executive cannot convey or encumber public land unilaterally. National Trust designation requires a 2/3 vote of both chambers with host State consent; removal from Trust designation requires the same 2/3 legislative threshold plus a national referendum administered by the Elections Panel within 180 days of the legislative vote, achieving 60% of votes cast with a minimum 50% citizen participation, and must comply with existing treaties and other obligations established in this article. International conservation agreements require a 2/3 Senate vote to withdraw before the national removal process begins. Land designated National Trust carries an active stewardship obligation: the federal government must maintain ecological integrity and public accessibility; the EM monitors compliance annually cross-referenced with §1.18. States and indigenous nations may enter co-management agreements with the Civic Consul for National Trust lands within their borders or ancestral territories without transferring Trust ownership. The Legislature shall provide by statute for the National Trust's internal organization, staffing, administration, and operational procedures. No statute may reduce the Trust's constitutional stewardship obligations, alter the designation or removal safeguards of this section, or diminish the EM's annual monitoring authority.

§18.5 Federal Property in Territories

Federal operational use rights in Territories follow the same framework as in States under §18.1 and §18.3. Where §18.4 requires host State consent for National Trust designation, that consent is not required for a Territory, which has no State legislature; instead, the Territory's representative body must publish a written position to the NRS within 60 days of the proposed designation. Where no position is published within 60 days, designation may proceed. The LM's ongoing audit of territorial use rights encompasses verification of Territory publication compliance and publishes findings to the NRS.

Article XIX — Transition and Ratification

§19.1 Activation Threshold and Ratification

This constitution takes effect upon: (1) interim Elections Panel certification that the NVS is operational and meets §11.2; and (2) a national ratification vote achieving 60% of votes cast with at least 50% participation. Ratification creates binding constitutional obligations on all governmental actors from Day Zero. Where multiple sovereign nations simultaneously pool sovereignty through a treaty of union, transition provisions adapt as specified in the treaty of union, subject to the constitutional principles of this Article. Where the ratifying polity maintains existing institutions overlapping with constitutional mechanisms, the Legislature must by statute within two years of Phase 4 define their relationship; accommodation statutes may not reduce the legal standing of pre-existing governance structures below their pre-Phase 4 status. Where the Legislature fails to meet this deadline, the LM publishes a compliance finding to the NRS, and the LM's ongoing audit encompasses the unresolved relationship until the statute is passed.

§19.2 Day Zero and Transition

Day Zero is the date the ratification threshold is certified as achieved. Upon ratification, all laws conflicting with the Individual Sovereignty Floor are immediately null and void; all public assets transfer to the NRS; and the 24-month Transition Window begins. The Republic exists the moment the Elections Panel certifies the threshold. The constitution is implemented through a four-phase transition: Phase 0 — pre-ratification preparation, during which the interim Elections Panel is constituted, the NVS certified operational, and the joint Monitor panel formed; Phase 1 — Emergency Stabilization (Days 1–90), during which existing officials serve as caretakers and social state continuity is the priority; Phase 2 — Institutional Construction (Days 91–270), during which Statehood Audits are conducted, Monitors formally constituted, and the NVS fully deployed; Phase 3 — First Elections (Days 271–450), encompassing the first federal electoral period and inaugural executive and judicial appointments; Phase 4 — Full Constitutional Operation, beginning the day the first Legislature convenes and the first executives take the constitutional oath.

§19.3 Caretaker Status

All existing government officials serve as caretakers during the Transition Window — restricted to maintaining existing services only; no new permanent legislation. Legislation enacted in violation of this restriction is void; the joint Monitor panel's supervision includes monitoring for such violations and publishing findings to the NRS; any Inhabitant may challenge such legislation before a court of competent jurisdiction. Transition is supervised by a joint Monitor panel of one representative per Monitor; the panel dissolves automatically at the Transition Window's conclusion. During Phase 0, before Monitor Generals are constituted, the interim Elections Panel constitutes the panel from a pre-qualified pool established by the ratification convention; from Phase 2, each Monitor General appoints their representative to the panel for the remainder of the Transition Window. A Monitor General appointment supersedes any interim Elections Panel appointment for that Monitor's seat.

§19.4 Pre-Constitutional Classified Documents

Predecessor classified material is subject from Day Zero to the standards of Article X. The Legislature must establish an independent review mechanism within 90 days of Phase 4 activation to apply those standards systematically. Material satisfying Article X may remain classified only under Article X; material that does not satisfy Article X must be declassified and published to the NRS. Failure to establish or staff the permanent review mechanism cannot preserve a classification that is invalid under Article X or suspend the right to review. Until the permanent mechanism is operational, a lawful temporary mechanism exercises only the review authority necessary to apply Article X and preserve access to review. Any Inhabitant may obtain Supreme Court review of a determination concerning predecessor classified material.

§19.5 Pre-Existing Obligations

- (1) The Republic assumes the public debt obligations of its predecessor government as a constitutional matter — it does not inherit a clean slate.
- (2) Active military operations of the prior government continue under existing authorization until the §2.2 military authorization framework can apply; the Legat Consul, once inaugurated, must assess each active operation against the authorized purposes under §14.1 and either link it to legislative authorization within 14 days or begin orderly cessation; operations not so linked within 60 days cease unless the Legislature grants a one-time authorization.
- (3) Social insurance programs — retirement pensions, disability benefits, health coverage — continue uninterrupted during the Transition Window.
- (4) All benefit obligations to persons who served in military or national service under the prior government are inherited and honored; the Legislature must pass a Veterans and National Service Benefits Act within the first budget cycle following Phase 4.
- (5) The Republic is the legal continuation of the prior government as a matter of international law; all international obligations, financial commitments, treaty relationships, and contractual obligations of the prior government are assumed as successor sovereign. Where an assumed international obligation conflicts with this constitution, the Republic is bound to renegotiate or formally supersede the obligation through the treaty process under §3.6; until that process is complete, the obligation is honored to the minimum extent required by international law without requiring any constitutional officer to violate Article I or any non-derogable right under §1.19.a.
- (6) From Day Zero, an independent judicial forum must remain continuously available for Article I claims arising from the nullification or displacement of predecessor law. Failure to establish or staff the permanent federal judiciary does not suspend jurisdiction or remedy. A temporary judicial mechanism may exercise only the authority necessary to preserve constitutional rights and ends automatically when the permanent judiciary is constitutionally capable of exercising the relevant jurisdiction.

§19.6 Transition Territories

- (1) Territories or subdivisions meeting the Statehood Audit by Phase 2 end may petition to enter as State or Territory. Those failing the Statehood Audit enter as Territory and may begin the Statehood Audit immediately.
- (2) Any territory may choose Territory status by simple legislative vote regardless of whether it meets the Statehood Audit.
- (3) Prior government states or territories may voluntarily subdivide during the Transition Window by vote of their existing legislative body; new subdivisions are treated as separate petitioning entities.
- (4) Where a State fails the Phase 2 Statehood Audit, it enters as a Territory; its population retains all Article I rights and participates in first Assembly elections proportionally.
- (5) All prior government territories that had not achieved statehood by Day Zero enter as Territories from Phase 4 activation without undergoing Phase 2 Statehood Audits; any capital district or special administrative region is assigned Territory status and follows the §15.2 path.
- (6) Political entities that held recognized State or equivalent status immediately prior to ratification and choose to enter the Republic as States do so as full States from Day Zero for the purpose of constituting the Senate and seating their legislators.
- (7) The annual Statehood Audit under §15.2 applies to all States from the first full audit cycle following Phase 4 activation; no founding status confers exemption from ongoing audit obligations or the consequences of audit failure. All other status determinations — Territory entry, Statehood qualification during the transition window, and post-founding pathways — follow §15.2.

§19.7 Transition Candidate Registers

The joint Monitor panel assembles the initial Candidate Registers for constitutionally established positions before Phase 3 elections can occur. The panel performs the register-assembly and qualification-review function required during transition; it compiles the founding register of recognized Indigenous nations under §16.1 and publishes it to the NRS before the close of Phase 1. Registers assembled by the panel carry full constitutional validity and the Legislature continues them through the first budget cycle after Phase 4. The panel performs interim Monetary Authority certification functions from Phase 4 activation only until the Monetary Authority is constitutionally constituted and capable of performing those functions under §12.1.a. Initial MA staffing and selection must comply with the independence, candidate-process, confirmation, staggered-term, and removal safeguards of §12.1.a; no temporary transition arrangement creates or implies a constitutionally fixed MA Director.

§19.8 Transitional Accountability Mechanism

Where a ratifying polity's predecessor government has documented constitutional violations, the Legislature may by statute passed by 2/3 of both chambers establish a Transitional Accountability Mechanism. Such a mechanism must be time-limited — not to exceed ten years in duration — non-criminal, and consistent with Article I in all its operations. The establishing statute defines the scope, procedures, and duration; no amendment may expand the scope without the same 2/3 majority; the NRS record is permanent. No new Mechanism may be established within ten years of the sunset of a prior one.

§19.9 Required Institutions and Temporary Continuity

Where this Constitution requires a statutory independent agency or other permanent institution to perform a specific constitutional function, the Legislature must establish the permanent institution within the statutory period and the following constitutional maximums from Phase 4 activation: the civic proficiency assessment administrator under §5.1, 180 days; the census agency under §3.2, 18 months; and a constitutionally capable Monetary Authority under §12.1.a, 180 days. A lawful temporary substitute may perform only the functions necessary to preserve constitutional continuity or rights until the permanent institution is capable. Missing an establishment deadline does not enlarge the substitute's authority, make it permanent, or suspend the underlying constitutional obligation. A missed constitutional maximum is immediately justiciable; a court of competent jurisdiction may compel the responsible actors and may authorize only those temporary measures necessary to preserve continuity or rights. Temporary substitute authority ends automatically when the permanent institution is constitutionally capable of performing the function. The LM publishes a compliance finding when an establishment deadline is missed and when the permanent institution becomes operational. The Legislature may not permanently delegate a constitutionally required independent function to a Monitor in lieu of establishing the required institution. The Legislature must by statute establish the transition from predecessor voting infrastructure to the constitutionally required NVS, ensuring no gap in democratic participation.

Article XX — Associated Communities

§20.1 Associated Community Status

Exclusively for sovereign entities — not a form of State or Territory status, not transitional, not incorporation. Available to recognized indigenous nations holding Associated Community status under §16.2, to sovereign nations that have achieved full sovereignty through the constitutional amendment process, and to independent nations outside the Republic seeking a defined relationship.

§20.2 Compact Terms and Equal Sovereignty

Equal parties; neither constitutionally superior. Observing delegates attend Assembly and Senate proceedings relevant to the compact — speaking rights, no vote, no quorum or threshold effect. The Republic may not impose its constitutional governance architecture on an Associated Community as a condition of the compact relationship. Minimum democratic legitimacy requirements applicable to States do not apply to Associated Communities.

§20.3 Compact Conditions and Compliance

- (1) No compact may be entered or ratified with any entity whose governance practices include, authorize, or systematically permit violations of any of the non-derogable rights established in §1.19.a, committed against any person within its jurisdiction.
- (2) The JM conducts annual compliance reviews and publishes findings to the NRS. Where the JM finds systematic violations of §1.19.a rights or any party challenges a compact on those grounds, the compact is suspended pending review through the compact's independent arbitration mechanism; the arbitration panel must issue a preliminary determination within 90 days of suspension; where no preliminary determination is issued within that period, the suspension lifts and the compact resumes pending the panel's final determination.
- (3) The arbitration panel may determine compact termination on confirmed violations without remediation within the period the compact specifies.
- (4) Economic value of the compact relationship is not a factor in JM assessment or arbitration review.
- (5) Where an Associated Community's territory includes indigenous nations with pre-existing governance relationships, the compact must address those relationships and may not require the Associated Community to eliminate or diminish pre-existing indigenous governance arrangements within its territory.
- (6) Compact suspension means the Associated Community's observer delegate participation rights are suspended for the duration of the review; all other compact obligations of both parties continue in effect pending the arbitration panel's final determination.

§20.4 Sovereign Mobility

The Associated Community may at any time, by its own democratic or traditional governance process, elect to terminate the compact and proceed as a fully independent sovereign nation. No Republic consent is required for compact termination, and the Republic may not impose conditions on or penalties for the decision to terminate. Compact termination takes effect on a date not less than 12 months from the date the Associated Community publishes written notice of termination to the NRS, to allow orderly transition of any services the compact provides. Where the Associated Community's highest governance authority issues a formal ruling within the 12-month period that the termination decision was invalid under the community's own governance law, the community may withdraw the termination notice; the Republic acknowledges the withdrawal and the compact continues.

§20.5 Reciprocal Obligations and Review

The compact must specify with particularity the reciprocal obligations of both parties and the review mechanism. The Associated Community holds obligations to the Republic as well as rights from it. Review must be scheduled at regular intervals defined in the compact; either party may request a review outside the schedule by providing written notice to the NRS.

§20.6 Compact Ratification

A compact with an Associated Community requires Senate ratification by 2/3 of full seated membership, consistent with the treaty ratification threshold under §3.6. Both executives must transmit the proposed compact to the Senate simultaneously with a joint assessment of its consistency with this Article. Under §9.1, either chamber may request a JM assessment of compact compliance before proceeding to ratification. A ratified compact takes effect on the date specified in its terms and is registered to the NRS as a public record. Where the executives cannot agree on a joint assessment, each may publish a separate assessment to the NRS; the Senate receives both and may proceed to ratification on that basis.

§20.7 Compact Continuity

Compacts in force at the time of any government transition continue without interruption and bind successive governments of the Republic. No election result, change in the Republic's internal constitutional arrangements, or government transition affects the validity or standing of a compact in force. A new government may initiate renegotiation of a compact through the process the compact specifies but may not unilaterally suspend, modify, or withdraw from a compact pending renegotiation.